

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4272

By: Miller

AS INTRODUCED

An Act relating to motor vehicles; creating the Uniform Certificate of Title for Vessels Act; defining terms; stating applicability of act; stating principles of law and equity supplement act; providing for jurisdiction under certificates of title; stating when a vessel or outboard motor is covered by certificate of title; requiring application for certificate of title for vessels and certain outboard motor within certain time frame; making exceptions; prohibiting the issuance of certain certificates of title unless title is created or applied for; requiring application for certificate of title; providing for the transmission of information; stating only an owner may apply for a certificate of title; making certain exceptions; requiring application be made on certain form; listing contents of application form; providing for form to contain electronic communication address for certain interested parties; requiring additional information for application; requiring Service Oklahoma maintain records; authorizing Service Oklahoma to require payment or evidence of payment; allowing assignment of certain identifying numbers; requiring certain verification of hull identification numbers; requiring certain affidavit; requiring certain inspection for homemade vessels; defining term; granting Department of Public Safety certain powers and duties; declaring certain acts to be unlawful; requiring Service Oklahoma to create a certificate of title within certain time frame unless rejected; authorizing creation of electronic and paper certificates of title; authorizing Service Oklahoma to reject certain applications; listing reasons for rejection; requiring certain applications be rejected; authorizing Service Oklahoma to cancel

1 certificates of title; listing reasons for
2 cancelation; requiring certain hearing if requested;
3 providing for notice of hearing; providing procedure
4 for service of notice; requiring hearing be held
5 within certain time frame; stating contents of a
6 certificate of title; authorizing certain notations
7 on certificate of title; requiring certificate
8 contain information on title brands; requiring
9 written certificates contain certain forms with
10 certain content; stating certain requirements for
11 certificates of title relating to hull-damaged
12 vessels; requiring creation of new certificate of
13 title within certain time frame; requiring insurers
14 make application for new certificate of title for
15 hull-damaged vessels; creating certain penalty for
16 noncompliance; requiring Service Oklahoma maintain
17 certain records related to a certificate of title;
18 requiring records be searchable by certain terms;
19 requiring Service Oklahoma share certain information;
20 stating certain information that is public record and
21 information which is not public record; requiring
22 Service Oklahoma send certificate of title to secured
23 party or owner of record; requiring electronic
24 certificate of title be destroyed upon issuance of
written certificate; requiring certain certificates
of title be surrendered to Service Oklahoma; stating
a certificate of title is prima facie evidence of the
accuracy of certain information; stating mere
possession of a certificate of title does not provide
right to obtain certain possession; stating the act
does not prohibit enforcement of law; stating when a
security interest is perfected; stating
identification of secured parties; stating certain
information is not by itself a factor in determining
if an interest is a security interest; stating when a
security interest may be perfected on a previously
created certificate of title; requiring certain
signature; stating contents of certain application;
stating when certain security interest is perfected;
providing for the creation of certain new
certificates of title; requiring maintenance of
certain files; providing for assigning of perfected
security interests; listing certain exceptions to
security interest requirements; providing for
situations when a certificate of documentation is
deleted or canceled; providing for when a security
interest becomes unperfected; providing for a

1 perfection of a security interest when a vessel or
2 outboard motor is used as collateral; providing for
3 perfection under the law of another jurisdiction;
4 providing when a secured party shall deliver certain
5 termination statement; providing for termination
6 statements related to written certificates of title;
7 providing security interested to cease to be
8 perfected upon delivery of termination statement;
9 requiring creation of new certificate of title;
10 requiring Service Oklahoma maintain certain
11 information; providing for certain liability for
12 secured parties for noncompliance; stating rules for
13 voluntary transfer of a vessel or outboard motor;
14 providing for satisfaction by creation of certain new
15 certificate of title; providing that failure of
16 compliance does not render certain transfer invalid;
17 stating a transfer without compliance is not
18 effective against certain interests; stating
19 transferer not liable if in compliance with rules for
20 voluntary transfer; stating certificate of title
21 effective even if it contains missing or incorrect
22 information; defining term; listing requirements if a
23 secured party's transfer statement is not rejected;
24 stating certain application or certificate of title
is not by itself a disposition of the vessel or
outboard motor and does not by itself relieve a
secured party of certain duties; defining terms;
listing requirement for transfer-by-law statement;
listing requirements if a secured party's transfer-
by-law statement is not rejected; stating certain
exception; authorizing Service Oklahoma to create a
new certificate of title if an application is
unaccompanied by a signed certificate of title;
providing for situations in which a new certificate
of title may be created; authorizing Service Oklahoma
to make certain indication on certificate of title;
stating when the indication may be removed;
authorizing Service Oklahoma to require applicant to
post certain bond or other equivalent source of
indemnity or security; limiting the amount of
required bond or other equivalent source of indemnity
or security; requiring certain information be in a
certain form required by Service Oklahoma; stating
when bond or other equivalent source of indemnity or
security may be released; providing for application
for replacement written certificates of title that
have been lost, stolen, mutilated, or destroyed;

1 requiring replacement certificates of title indicated
2 on its face that it is a replacement; requiring
3 destruction of certain original certificates of title
4 if recovered; stating a buyer in the ordinary course
5 of business has certain protections; stating certain
6 rights are governed by the Uniform Commercial Code;
7 stating the effect of perfection and nonperfection
8 are governed by the Uniform Commercial Code;
9 providing for situations when a certificate of title
10 does not indicate it is subject to a security
11 interest or contain a statement that it may be
12 subject to a security interest; requiring Service
13 Oklahoma retain certain information in its files;
14 requiring information be accessible by certain means;
15 requiring Service Oklahoma send certain
16 acknowledgement; listing requirements acknowledgement
17 shall contain; requiring Service Oklahoma send or
18 make available certain information; authorizing
19 information be provided in any medium; requiring
20 record be self-authenticating; requiring certain
21 consideration be given to promote uniformity with
22 other states; stating effect the Uniform Certificate
23 of Title for Vessels Act has on certain federal act;
24 stating that certain rights, duties, and interests
shall remain valid; stating effect of act on security
interest in place before effective date of act;
amending 43 O.S. 2021, Sections 139 and 139.1, which
relate to legal right to child support and remedy for
noncompliance with child support order; modifying
reference; amending 63 O.S. 2021, Section 4003, as
amended by Section 200, Chapter 282, O.S.L. 2022 (63
O.S. Supp. 2025, Section 4003), which relates to
title and annual registration required; modifying to
remove titling under the Oklahoma Vessel and Motor
Registration Act; requiring act only govern
registration; amending Section 2, Chapter 179, O.S.L.
2022 (63 O.S. Supp. 2025, Section 4003A), which
relates to electronic filing, storage, and delivery
of boat and motor certificates of title; modifying
statutory reference; amending 63 O.S. 2021, Section
4004, as amended by Section 201, Chapter 282, O.S.L.
2022 (63 O.S. Supp. 2025, Section 4004), which
relates to administration of the act; granting
authority to Service Oklahoma to administer the
Uniform Certificate of Title for Vessels Act;
authorizing the promulgation of certain rules;
granting authorized peace officers authority and

jurisdiction to enforce certain act; amending 63 O.S. 2021, Section 4005, which relates to exemptions; making certain exemptions for title related to the Uniform Certificate of Title for Vessels Act; requiring certain vessels be titled; authorizing certain title upon request; amending 63 O.S. 2021, Section 4006, as amended by Section 202, Chapter 282, O.S.L. 2022 (63 O.S. Supp. 2025, Section 4006), which relates to utilization of licensed operators; authorizing licensed operators to administer the Uniform Certificate of Title for Vessels Act; amending 63 O.S. 2021, Section 4026, which relates to repossession by mortgagee; modifying statutory reference; amending 63 O.S. 2021, Section 4027, as amended by Section 60, Chapter 171, O.S.L. 2025 (63 O.S. Supp. 2025, Section 4027), which relates to lien of title and registration fees and penalties; modifying statutory reference; amending 63 O.S. 2021, Section 4028, as last amended by Section 61, Chapter 171, O.S.L. 2025 (63 O.S. Supp. 2025, Section 4028), which relates to apportionment of fees, taxes, and penalties; modifying statutory reference; amending statutory reference; amending 63 O.S. 2021, Section 4029, as amended by Section 218, Chapter 282, O.S.L. 2022 (63 O.S. Supp. 2025, Section 4029), which relates to refusal, revocation or cancellation of certificate of title or registration; removing certificates of title from process; amending 63 O.S. 2021, Section 4030, as amended by Section 219, Chapter 282, O.S.L. 2022 (63 O.S. Supp. 2025, Section 4030), which relates to permanent number system for vessels; modifying statutory reference; amending 63 O.S. 2021, Section 4031, which relates to boat liveries; modifying statutory reference; amending 63 O.S. 2021, Section 4032, as amended by Section 220, Chapter 282, O.S.L. 2022 (63 O.S. Supp. 2025, Section 4032), which relates to violations; modifying statutory reference; amending 63 O.S. 2021, Section 4033, as amended by Section 221, Chapter 282, O.S.L. 2022 (63 O.S. Supp. 2025, Section 4033), which relates to dealers license required; modifying statutory references; amending 63 O.S. 2021, Section 4036, which relates to used vessels or motors; modifying statutory reference; amending 63 O.S. 2021, Section 4041, as amended by Section 226, Chapter 282, O.S.L. 2022 (63 O.S. Supp. 2025, Section 4041), which relates to violations; modifying statutory

1 references; amending 63 O.S. 2021, Section 4106,
2 which relates to exemptions; modifying statutory
3 reference; amending 63 O.S. 2021, Section 4107, which
4 relates to tax in lieu of all other taxes; modifying
5 statutory reference; amending 63 O.S. 2021, Section
6 4204, as amended by Section 233, Chapter 282, O.S.L.
7 2022 (63 O.S. Supp. 2025, Section 4204), which
8 relates to administration and enforcement of act upon
9 waters under jurisdiction of Grand River Dam
10 Authority; modifying statutory reference; amending 68
11 O.S. 2021, Section 2805, which relates to fees or
12 taxes to be levied in lieu of ad valorem tax;
13 modifying statutory reference; amending 68 O.S. 2021,
14 Section 5301, which relates to imposition of tax on
15 new vehicles and vessels in lieu of ad valorem tax;
16 modifying statutory reference; amending 68 O.S. 2021,
17 Section 5306, which relates to qualifications;
18 modifying statutory reference; repealing 63 O.S.
19 2021, Sections 4008, as amended by Section 204,
20 Chapter 282, O.S.L. 2022, 4009, as amended by Section
21 205, Chapter 282, O.S.L. 2022, 4012, as amended by
22 Section 207, Chapter 282, O.S.L. 2022, and 4013 as
23 amended by Section 208, Chapter 282, O.S.L. 2022 (63
24 O.S. Supp. 2025, Sections 4008, 4009, 4012, and
4013), which relate to certificates of title for
vessels and motors; providing for recodification;
providing for codification; and providing an
effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 4050 of Title 63, unless there
is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Uniform
Certificate of Title for Vessels Act".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 4051 of Title 63, unless there
3 is created a duplication in numbering, reads as follows:

4 A. As used in the Uniform Certificate of Title for Vessels Act:

5 1. "Barge" means a vessel that is not self-propelled or fitted
6 for propulsion by sail, paddle, oar, or similar device;

7 2. "Builder's certificate" means a certificate of the facts of
8 build of a vessel described in 46 C.F.R., Section 67.99, as amended;

9 3. "Buyer" means a person that buys or contracts to buy a
10 vessel or outboard motor;

11 4. "Cancel", with respect to a certificate of title, means to
12 make the certificate ineffective;

13 5. "Canoe" means a light narrow watercraft with both ends
14 typically tapered to a sharp point which is propelled solely by its
15 occupants, using a single-bladed paddle as a lever without the aid
16 of a fulcrum provided by oarlocks, thole pins, crutches, or similar
17 arrangements;

18 6. "Certificate of origin" means a record created by a
19 manufacturer or importer as the manufacturer's or importer's proof
20 of identity of a vessel or outboard motor. The term includes a
21 manufacturer's certificate or statement of origin and an importer's
22 certificate or statement of origin. The term does not include a
23 builder's certificate;

1 7. "Certificate of title" means a record, created by Service
2 Oklahoma under the Uniform Certificate of Title for Vessels Act or
3 by a governmental agency of another jurisdiction under the law of
4 that jurisdiction, that is designated as a certificate of title by
5 Service Oklahoma and is evidence of ownership of a vessel or
6 outboard motor;

7 8. "Dealer" means any person engaged in the business of
8 selling, trading, renting with the option to purchase, or attempting
9 to negotiate or negotiating sales or exchanges of interests in new
10 or used vessels or motors, or new and used vessels or motors, or any
11 combination thereof;

12 9. "Documented vessel" means a vessel covered by a certificate
13 of documentation issued pursuant to 46 U.S.C., Section 12105, as
14 amended. The term does not include a foreign-documented vessel;

15 10. "Electronic" means relating to technology having
16 electrical, digital, magnetic, wireless, optical, electromagnetic,
17 or similar capabilities;

18 11. "Electronic certificate of title" means a certificate of
19 title consisting of information that is stored solely in an
20 electronic medium and is retrievable in perceivable form;

21 12. "Foreign-documented vessel" means a vessel or outboard
22 motor the ownership of which is recorded in a registry maintained by
23 a country other than the United States which identifies each person
24 that has an ownership interest in a vessel or outboard motor and

1 includes a unique alphanumeric designation for the vessel or
2 outboard motor;

3 13. "Good faith" means honesty in fact and the observance of
4 reasonable commercial standards of fair dealing;

5 14. "Hull damaged" means compromised with respect to the
6 integrity of a vessel's hull by a collision, allision, lightning
7 strike, fire, explosion, running aground, or similar occurrence, or
8 the sinking of a vessel in a manner that creates a significant risk
9 to the integrity of the vessel's hull;

10 15. "Hull identification number" means a serial number affixed
11 to the outside of the hull of a vessel on the upper starboard side
12 (right) corner of the transom (back wall) which is assigned by the
13 manufacturer or Service Oklahoma;

14 16. "Inboard motor" means an internal combustion engine mounted
15 inside a vessel which provides the transfer of power to move a
16 vessel through the water;

17 17. "Inboard/outboard motor" means an internal combustion engine
18 mounted inside a vessel and an external stern drive attached through
19 the transom of the vessel providing the transfer of power to move
20 the vessel through the water;

21 18. "Kayak" means a light, narrow vessel with both ends
22 typically tapered to a sharp point and propelled by human muscular
23 effort by one or more individuals seated inside or on top of the
24 vessel using double-bladed paddles, hand cranks, or pedals;

1 19. "Kiteboard" means a vessel, similar in appearance to a
2 surfboard, with or without foot straps or bindings, combined with a
3 large controllable kite to propel the rider and board across the
4 water;

5 20. "Lien creditor", with respect to a vessel or outboard
6 motor, means:

7 a. a creditor that has acquired a lien on the vessel or
8 outboard motor by attachment, levy, or the like,

9 b. an assignee for benefit of creditors from the time of
10 assignment,

11 c. a trustee in bankruptcy from the date of the filing of
12 the petition, or

13 d. a receiver in equity from the time of appointment;

14 21. "Office" means Service Oklahoma or a licensed operator;

15 22. "Outboard motor" means an internal combustion engine
16 capable of being externally mounted at the stern of a vessel which
17 provides the transfer of power to move a vessel through the water;

18 23. "Owner" means a person, other than a lien holder, having a
19 property interest in or title to a vessel or motor. The term
20 includes a person entitled to the use or possession of a vessel or
21 motor subject to the interest of another person, reserved or created
22 by agreement on securing payment or performance of an obligation,
23 but the term excludes a lessee under a lease not intended as a
24 security;

1 24. "Owner of record" means the owner indicated in the records
2 of Service Oklahoma;

3 25. "Paddleboat" means a vessel less than eight (8) feet in
4 length designed to be propelled solely by human power through a
5 belt, chain, or gears;

6 26. "Person" means an individual, corporation, business trust,
7 estate, trust, statutory trust, partnership, limited liability
8 company, association, joint venture, public corporation, government
9 or governmental subdivision, agency, or instrumentality, or any
10 other legal or commercial entity;

11 27. "Physical certificate of title" means a certificate of
12 title consisting of information inscribed on a tangible medium.

13 28. "Purchase" means to take by sale, lease, mortgage, pledge,
14 consensual lien, security interest, gift, or any other voluntary
15 transaction that creates an interest in a vessel or outboard motor;

16 29. "Purchaser" means a person that takes by purchase;

17 30. "Record" means information that is inscribed on a tangible
18 medium or that is stored in an electronic or other medium and is
19 retrievable in perceivable form;

20 31. "Secured party", with respect to a vessel or outboard
21 motor, means a person:

22 a. in whose favor a security interest is created or
23 provided for under a security agreement, whether or
24 not any obligation to be secured is outstanding,

1 b. that is a consignor under Article 9 of Title 12A of
2 the Oklahoma Statutes, or

3 c. that holds a security interest arising under Sections
4 2-401, 2-505, subsection 3 of Section 2-711, or
5 subsection 5 of Section 2A-508 of Title 12A of the
6 Oklahoma Statutes;

7 32. "Secured party of record" means the secured party whose
8 name is indicated as the name of the secured party in the records of
9 Service Oklahoma or, if the records indicate more than one secured
10 party, the one first indicated;

11 33. "Security interest" means an interest in a vessel or
12 outboard motor which secures payment or performance of an obligation
13 if the interest is created by contract or arises under Sections 2-
14 401, 2-505, subsection 3 of Section 2-711, or subsection 5 of
15 Section 2A-508 of Title 12A of the Oklahoma Statutes. The term
16 includes any interest of a consignor in a vessel or outboard motor
17 in a transaction that is subject to Article 9 of Title 12A of the
18 Oklahoma Statutes. The term does not include the special property
19 interest of a buyer of a vessel or outboard motor on identification
20 of that vessel or outboard motor to a contract for sale under
21 Section 2-501 of Title 12A of the Oklahoma Statutes, but a buyer
22 also may acquire a security interest by complying with Section 1-9-
23 101 et seq. of Title 12A of the Oklahoma Statutes. Except as
24 otherwise provided in Section 2-505 of Title 12A of the Oklahoma

1 Statutes, the right of a seller or lessor of a vessel or outboard
2 motor under Article 2 or 2A of Title 12A of the Oklahoma Statutes to
3 retain or acquire possession of the vessel or outboard motor is not
4 a security interest, but a seller or lessor also may acquire a
5 security interest by complying with Article 9 of Title 12A of the
6 Oklahoma Statutes. The retention or reservation of title by a
7 seller of a vessel or outboard motor notwithstanding shipment or
8 delivery to the buyer under Section 2-401 of Title 12A of the
9 Oklahoma Statutes is limited in effect to a reservation of a
10 security interest. Whether a transaction in the form of a lease
11 creates a security interest is determined by Section 1-203 of Title
12 12A of the Oklahoma Statutes;

13 34. "Sign" means, with present intent to authenticate or adopt
14 a record, to:

- 15 a. make or adopt a tangible symbol, or
- 16 b. attach to or logically associate with the record an
17 electronic symbol or process;

18 35. "State" means a state of the United States, the District of
19 Columbia, Puerto Rico, the United States Virgin Islands, or any
20 territory or insular possession subject to the jurisdiction of the
21 United States;

22 36. "State of principal use" means the state where the vessel
23 or motor is used, is to be used, or remains for any period in excess
24 of sixty (60) days;

1 37. "Title brand" means a designation of previous damage, use,
2 or condition that must be indicated on a certificate of title;

3 38. "Transfer of ownership" means a voluntary or involuntary
4 conveyance of an interest in a vessel or outboard motor;

5 39. "Vessel" means any watercraft used or capable of being used
6 as a means of transportation on water, except:

7 a. a seaplane,

8 b. an amphibious vehicle for which a certificate of title
9 is issued pursuant to the Oklahoma Vehicle License and
10 Registration Act or a similar statute of another
11 state,

12 c. watercraft less than sixteen (16) feet in length and
13 propelled solely by sail, paddle, oar, or an engine of
14 less than ten (10) horsepower,

15 d. watercraft that operate only on a permanently fixed,
16 manufactured course and the movement of which is
17 restricted to or guided by means of a mechanical
18 device to which the watercraft is attached or by which
19 the watercraft is controlled,

20 e. a stationary floating structure that:

21 (1) does not have and is not designed to have a mode
22 of propulsion of its own,

(2) is dependent for utilities upon a continuous utility hookup to a source originating on shore, and

(3) has a permanent, continuous hookup to a shoreside sewage system,

f. watercraft owned by the United States, a state, or a foreign government or a political subdivision,

g. watercraft used solely as a lifeboat on another watercraft,

h. watercraft that is used exclusively and solely for racing purposes,

i. watercraft that is a commercial flotation device which is issued a license by the Grand River Dam Authority pursuant to the provisions of the Scenic Rivers Act; provided, a commercial flotation device shall be required to be titled pursuant to the provisions of this act, and

j. watercraft that is a canoe, kayak, kiteboard or paddleboat, except that such watercraft, when powered by any means other than human power, shall be titled and registered pursuant to the provisions of this act;

40. "Vessel number" means the alphanumeric designation for a vessel issued pursuant to 46 U.S.C., Section 12301, as amended; and

B. The following definitions and terms also apply to this act:

1 1. "Agreement" shall have the same meaning as defined in
2 paragraph (3) of subsection (b) of Section 1-201 of Title 12A of the
3 Oklahoma Statutes;

4 2. "Buyer in ordinary course of business" shall have the same
5 meaning as defined in paragraph (9) of subsection (b) of Section 1-
6 201 of Title 12A of the Oklahoma Statutes;

7 3. "Conspicuous" shall have the same meaning as defined in
8 paragraph (10) of subsection (b) of Section 1-201 of Title 12A of
9 the Oklahoma Statutes;

10 4. "Consumer goods" shall have the same meaning as defined in
11 paragraph (23) of subsection (a) of Section 1-9-102 of Title 12A of
12 the Oklahoma Statutes;

13 5. "Debtor" shall have the same meaning as defined in paragraph
14 (28) of subsection (a) of Section 1-9-102 of Title 12A of the
15 Oklahoma Statutes;

16 6. "Knowledge" shall have the same meaning as defined in
17 Section 1-202 of Title 12A of the Oklahoma Statutes;

18 7. "Lease" shall have the same meaning as defined in paragraph
19 (k) of subsection (1) of Section 2A-103 of Title 12A of the Oklahoma
20 Statutes;

21 8. "Lessor" shall have the same meaning as defined in paragraph
22 (q) of subsection (1) of Section 2A-103 of Title 12A of the Oklahoma
23 Statutes;

1 9. "Notice" shall have the same meaning as defined in Section
2 1-202 Title 12A of the Oklahoma Statutes;

3 10. "Representative" shall have the same meaning as defined in
4 paragraph (33) of subsection (b) of Section 1-201 of Title 12A of
5 the Oklahoma Statutes;

6 11. "Sale" shall have the same meaning as defined in Section 2-
7 106 of Title 12A of the Oklahoma Statutes;

8 12. "Security agreement" shall have the same meaning as defined
9 in paragraph (74) of subsection (1) of Section 1-9-102 of Title 12A
10 of the Oklahoma Statutes;

11 13. "Seller" shall have the same meaning as defined in
12 paragraph (O) of subsection (1) of Section 2-103 of Title 12A of the
13 Oklahoma Statutes;

14 14. "Send" shall have the same meaning as defined in paragraph
15 (36) of subsection (B) of Section 1-201 of Title 12A of the Oklahoma
16 Statutes;

17 15. "Value" shall have the same meaning as defined in Section
18 1-204 of Title 12A of the Oklahoma Statutes.

19 C. The definitions in subsections A and B of this section do
20 not apply to any state or federal law governing licensing,
21 numbering, or registration if the same term is used in that law.

22 SECTION 3. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 4052 of Title 63, unless there
24 is created a duplication in numbering, reads as follows:

1 Subject to Section 28 of this act, the Uniform Certificate of
2 Title for Vessels Act applies to any transaction, certificate of
3 title, or record relating to a vessel or outboard motor, even if the
4 transaction, certificate of title, or record was entered into or
5 created before the effective date of this act. Motors classified as
6 inboard motors shall not be required to be titled pursuant to the
7 provisions of the Uniform Certificate of Title for Vessels Act.

8 SECTION 4. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 4053 of Title 63, unless there
10 is created a duplication in numbering, reads as follows:

11 Unless displaced by a provision of the Uniform Certificate of
12 Title for Vessels Act, the principles of law and equity supplement
13 its provisions.

14 SECTION 5. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 4054 of Title 63, unless there
16 is created a duplication in numbering, reads as follows:

17 A. The local law of the jurisdiction under whose certificate of
18 title a vessel is covered governs all issues relating to the
19 certificate from the time the vessel or outboard motor becomes
20 covered by the certificate until the vessel or outboard motor
21 becomes covered by another certificate or becomes a documented
22 vessel, even if no other relationship exists between the
23 jurisdiction and the vessel or outboard motor or its owner.

1 B. A vessel or outboard motor becomes covered by a certificate
2 of title when an application for the certificate is approved and the
3 applicable fees are delivered to Service Oklahoma in accordance with
4 the Uniform Certificate of Title for Vessels Act or to the
5 governmental agency that creates a certificate in another
6 jurisdiction in accordance with the law of that jurisdiction.

7 SECTION 6. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 4055 of Title 63, unless there
9 is created a duplication in numbering, reads as follows:

10 A. Except as otherwise provided in subsections B and C of this
11 section, the owner of a vessel or outboard motor in excess of ten
12 (10) horsepower for which this state is the state of principal use
13 shall deliver to Service Oklahoma an application for a certificate
14 of title for the vessel or outboard motor, with the applicable fee,
15 not later than thirty (30) days after the later of:

- 16 1. The date of a transfer of ownership; or
- 17 2. The date this state becomes the state of principal use.

18 B. An application for a certificate of title is not required
19 for:

- 20 1. A documented vessel;
- 21 2. A foreign-documented vessel;
- 22 3. A barge;
- 23 4. A vessel or outboard motor before delivery if the vessel is
24 under construction or completed pursuant to contract; or

1 5. A new vessel or outboard motor in the inventory or stock of
2 licensed dealers for resale which new vessels or outboard motor
3 shall be subject to ad valorem taxation; however, said provisions
4 shall apply to and cover all used vessels and outboard motors in the
5 possession and inventory of a dealer except as provided for in
6 Section 4036 of Title 63 of the Oklahoma Statutes.

7 C. Service Oklahoma shall not issue, transfer, or renew a
8 certificate of title for a vessel or outboard motor issued pursuant
9 to the requirements of 46 U.S.C., Section 12301, as amended, unless
10 Service Oklahoma has created a certificate of title for the vessel
11 or outboard motor or an application for a certificate for the vessel
12 or outboard motor and the applicable fee have been delivered to
13 Service Oklahoma.

14 SECTION 7. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 4056 of Title 63, unless there
16 is created a duplication in numbering, reads as follows:

17 A. The owner of a vessel or outboard motor which is required to
18 be titled shall apply to Service Oklahoma or any licensed operator
19 for a certificate of title. When application is made with a
20 licensed operator, the application information shall be transmitted
21 electronically to Service Oklahoma by the licensed operator. The
22 licensed operator shall forward the required application along with
23 evidence of ownership, where required, by mail. Service Oklahoma
24 shall upon receipt of proper application information issue an

1 Oklahoma certificate of title. Such certificates may be mailed to
2 the applicant. Except as otherwise provided in Sections 10, 15, 19,
3 20, 21, and 22 of this act, only an owner may apply for a
4 certificate of title.

5 B. An application for a certificate of title shall be upon a
6 form furnished by Service Oklahoma and shall be signed by the
7 applicant and contain:

8 1. The applicant's name, the street address of the applicant's
9 principal residence, and, if different, the applicant's mailing
10 address;

11 2. The name and mailing address of each other owner of the
12 vessel;

13 3. The hull identification number for the vessel or, if none,
14 an application for the issuance of a hull identification number for
15 the vessel;

16 4. The vessel number for the vessel or, if none issued by
17 Service Oklahoma, an application for a vessel number;

18 5. A description of the vessel or outboard motor as required by
19 Service Oklahoma, which shall include:

- 20 a. the official number for the vessel or outboard motor,
21 if any, assigned by the United States Coast Guard,
- 22 b. the name of the manufacturer, builder, or maker,
- 23 c. the model year or the year in which the manufacture or
24 build of the vessel or outboard motor was completed,

- d. the overall length of the vessel,
- e. the vessel type,
- f. the hull material,
- g. the propulsion type,
- h. the engine drive type, if any, and
- i. the fuel type, if any;

6. An indication of all security interests in the vessel or outboard motor known to the applicant and the name and mailing address of each secured party;

7. A statement that the vessel is not a documented vessel or a foreign-documented vessel;

8. Any title brand known to the applicant and, if known, the jurisdiction under whose law the title brand was created;

9. If the applicant knows that the vessel is hull damaged, a statement that the vessel is hull damaged;

10. If the application is made in connection with a transfer of ownership, the transferor's name, street address, and, if different, mailing address, the sales price, if any, and the date of the transfer; and

11. If the vessel or outboard motor previously was registered or titled in another jurisdiction, a statement identifying each jurisdiction known to the applicant in which the vessel or outboard motor was registered or titled.

1 C. In addition to the information required by subsection B of
2 this section, an application for a certificate of title shall
3 contain an electronic communication address of the owner. The
4 application may contain an electronic communication address for the
5 transferor or secured party.

6 D. Except as otherwise provided in Section 19, 20, 21, or 22 of
7 this act, an application for a certificate of title shall be
8 accompanied by:

9 1. A certificate of title signed by the owner shown on the
10 certificate and which:

11 a. identifies the applicant as the owner of the vessel,
12 or

13 b. is accompanied by a record that identifies the
14 applicant as the owner; or

15 2. If there is no certificate of title:

16 a. if the vessel was a documented vessel, a record issued
17 by the United States Coast Guard which shows the
18 vessel is no longer a documented vessel and identifies
19 the applicant as the owner,

20 b. if the vessel was a foreign-documented vessel, a
21 record issued by the foreign country which shows the
22 vessel is no longer a foreign-documented vessel and
23 identifies the applicant as the owner, or
24

1 c. in all other cases, a certificate of origin, bill of
2 sale, or other record that to the satisfaction of
3 Service Oklahoma identifies the applicant as the
4 owner.

5 E. A record submitted in connection with an application is part
6 of the application. Service Oklahoma shall maintain the record in
7 its files.

8 F. Service Oklahoma may require that an application for a
9 certificate of title be accompanied by payment or evidence of
10 payment of all fees and taxes payable by the applicant under law of
11 this state other than the Uniform Certificate of Title for Vessels
12 Act in connection with the application or the acquisition or use of
13 the vessel.

14 G. In the absence of a dealer's or manufacturer's number,
15 Service Oklahoma may assign such identifying number to the vessel or
16 outboard motor, which shall be permanently stamped, burned, or
17 pressed into or attached onto such vessel or outboard motor.

18 H. Every dealer selling new or used vessels or outboard motors
19 and every individual not licensed as a dealer who sells a new or
20 used vessel or outboard motor shall verify the hull identification
21 number or serial number is the same as the number on the current
22 registration of the vessel or outboard motor. The seller of the
23 vessel or outboard motor shall sign a notarized affidavit, under
24 penalty of perjury, affirming the numbers are the same.

1 I. 1. Before a homemade vessel is issued a hull identification
2 number from Service Oklahoma, the vessel and the motor shall be
3 inspected by a commissioned officer of the Oklahoma Highway Patrol
4 Division of the Department of Public Safety or by any other employee
5 of the Department or any other law enforcement officer of the state
6 as the Commissioner of Public Safety may designate, pursuant to the
7 rules promulgated by the Commissioner of Public Safety. For the
8 purposes of this act, "homemade vessel" means any vessel not
9 allotted a hull identification number by a manufacturer, and
10 specifically excludes any vessel upon which the hull identification
11 number has been covered, altered, defaced, destroyed, or removed.

12 2. The Department of Public Safety is hereby granted authority
13 and jurisdiction, pursuant to Article 1 of the Administrative
14 Procedures Act, Section 250 et seq. of Title 75 of the Oklahoma
15 Statutes, to promulgate, administer and enforce all necessary rules
16 deemed necessary to implement the provisions of this section.

17 3. The Department of Public Safety shall prescribe all forms
18 deemed necessary to implement the provisions of this subsection.

19 J. It shall be unlawful to:

20 1. Improperly display or fail to display a vessel's hull
21 identification number;

22 2. Operate or possess a vessel on which the hull identification
23 number has been removed; or
24

1 3. Operate or possess a motor on which the serial number has
2 been removed.

3 SECTION 8. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 4057 of Title 63, unless there
5 is created a duplication in numbering, reads as follows:

6 A. Unless an application for a certificate of title is rejected
7 under subsection C or D of this section, Service Oklahoma shall
8 create a certificate for the vessel or outboard motor in accordance
9 with subsection B of this section after delivery of an application
10 that complies with Section 7 of this act.

11 B. If Service Oklahoma creates electronic certificates of
12 title, Service Oklahoma shall create an electronic certificate
13 unless in the application the secured party of record or, if none,
14 the owner of record, requests that Service Oklahoma create a written
15 certificate in accordance with rules promulgated by Service
16 Oklahoma.

17 C. Except as otherwise provided in subsection D of this
18 section, Service Oklahoma may reject an application for a
19 certificate of title only if:

- 20 1. The application does not comply with Section 7 of this act;
21 2. The application does not contain documentation sufficient
22 for Service Oklahoma to determine whether the applicant is entitled
23 to a certificate;

1 3. There is a reasonable basis for concluding that the
2 application is fraudulent or issuance of a certificate would
3 facilitate a fraudulent or illegal act; or

4 4. The application does not comply with the laws of this state
5 other than the Uniform Certificate of Title for Vessels Act.

6 D. Service Oklahoma shall reject an application for a
7 certificate of title for a vessel that is a documented vessel or a
8 foreign-documented vessel.

9 E. Service Oklahoma may cancel a certificate of title only if
10 Service Oklahoma:

11 1. Could have rejected the application for the certificate
12 under subsection C of this section;

13 2. Is required to cancel the certificate under another
14 provision of the Uniform Certificate of Title for Vessels Act; or

15 3. Receives satisfactory evidence that the vessel is a
16 documented vessel or a foreign-documented vessel.

17 F. 1. Service Oklahoma shall provide an opportunity for a
18 hearing at which the owner and any other interested party may
19 present evidence in support of or opposition to cancellation of a
20 certificate of title. Said notice shall be mailed to the last known
21 address reflected on the motor vehicle records of Service Oklahoma
22 and must be mailed at least ten (10) days prior to the revocation
23 hearing date with a certificate of mailing stating the date it was
24 mailed by Service Oklahoma. Such certificate of mailing shall be

1 presumed to demonstrate compliance with the notice requirement in
2 this section;

3 2. Any person or entity to whom notice was sent pursuant to
4 this section who fails to appear at such hearing may be found in
5 default and subject to revocation of a certificate of title or
6 registration without further notice or process;

7 3. The hearing shall be subject to the hearing requirements in
8 Article II of the Administrative Procedures Act, Section 308a et
9 seq. of Title 75 of the Oklahoma Statutes; and

10 4. Service Oklahoma may promulgate administrative code rules
11 describing the hearing process.

12 SECTION 9. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 4058 of Title 63, unless there
14 is created a duplication in numbering, reads as follows:

15 A. A certificate of title shall contain:

16 1. The date the certificate was created;

17 2. The name of the owner of record and, if not all owners are
18 listed, an indication that there are additional owners indicated in
19 the files of Service Oklahoma;

20 3. The mailing address of the owner of record;

21 4. The hull identification number;

22 5. The information listed in paragraph 6 of subsection B of
23 Section 7 of this act;

1 6. Except as otherwise provided in subsection B of Section 15
2 of this act, the name and mailing address of the secured party of
3 record, if any, and if not all secured parties are listed, an
4 indication that there are other security interests indicated in the
5 files of Service Oklahoma; and

6 7. All title brands indicated in the files of Service Oklahoma
7 covering the vessel, including brands indicated on a certificate
8 created by a governmental agency of another jurisdiction and
9 delivered to Service Oklahoma.

10 B. The Uniform Certificate of Title for Vessels Act does not
11 preclude Service Oklahoma from noting on a certificate of title the
12 name and mailing address of a secured party that is not a secured
13 party of record.

14 C. For each title brand indicated on a certificate of title,
15 the certificate shall identify the jurisdiction under whose law the
16 title brand was created or the jurisdiction that created the
17 certificate on which the title brand was indicated. If the meaning
18 of a title brand is not easily ascertainable or cannot be
19 accommodated on the certificate, the certificate may state:
20 "Previously branded in (insert the jurisdiction under whose law the
21 title brand was created or whose certificate of title previously
22 indicated the title brand)."

23 D. If the files of Service Oklahoma indicate that a vessel
24 previously was registered or titled in a foreign country, Service

1 Oklahoma shall indicate on the certificate of title that the vessel
2 was registered or titled in that country.

3 E. A written certificate of title shall contain a form that all
4 owners indicated on the certificate may sign to evidence consent to
5 a transfer of an ownership interest to another person. The form
6 shall include a certification, signed under penalty of perjury, that
7 the statements made are true and correct to the best of each owner's
8 knowledge, information, and belief.

9 F. A written certificate of title shall contain a form for the
10 owner of record to indicate, in connection with a transfer of an
11 ownership interest, that the vessel is hull damaged.

12 SECTION 10. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 4059 of Title 63, unless there
14 is created a duplication in numbering, reads as follows:

15 A. Unless subsection C of this section applies, at or before
16 the time the owner of record transfers an ownership interest in a
17 hull-damaged vessel that is covered by a certificate of title
18 created by Service Oklahoma, if the damage occurred while that
19 person was an owner of the vessel and the person has notice of the
20 damage at the time of the transfer, the owner shall:

21 1. Deliver to Service Oklahoma an application for a new
22 certificate that complies with Section 7 of this act and includes
23 the title brand designation "Hull Damaged"; or
24

1 2. Indicate on the certificate in the place designated for that
2 purpose that the vessel is hull damaged and deliver the certificate
3 to the transferee.

4 B. After delivery to Service Oklahoma of the application under
5 paragraph 1 of subsection A of this section or the certificate of
6 title under paragraph 2 of subsection 2 of this section, Service
7 Oklahoma shall create a new certificate that indicates that the
8 vessel is branded "Hull Damaged".

9 C. Before an insurer transfers an ownership interest in a hull-
10 damaged vessel that is covered by a certificate of title created by
11 Service Oklahoma, the insurer shall deliver to Service Oklahoma an
12 application for a new certificate that complies with Section 6 of
13 this act and includes the title brand designation "Hull Damaged".
14 Service Oklahoma shall create a new certificate that indicates that
15 the vessel is branded "Hull Damaged".

16 D. An owner of record that fails to comply with subsection A of
17 this section, a person that solicits or colludes in a failure by an
18 owner of record to comply with subsection A of this section, or an
19 insurer that fails to comply with subsection C of this section is
20 subject to penalty of One Thousand Dollars (\$1,000.00). The penalty
21 shall be collected by Service Oklahoma and deposited in the Service
22 Oklahoma Revolving Fund established in Section 3-106 of Title 47 of
23 the Oklahoma Statutes.

1 SECTION 11. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 4060 of Title 63, unless there
3 is created a duplication in numbering, reads as follows:

4 A. For each record relating to a certificate of title submitted
5 to Service Oklahoma, Service Oklahoma shall:

6 1. Ascertain or assign the hull identification number for the
7 vessel;

8 2. Maintain the hull identification number and all the
9 information submitted with the application pursuant to subsection B
10 of Section 7 of this act to which the record relates, including the
11 date the record was delivered to Service Oklahoma;

12 3. Maintain the files for public inspection subject to
13 subsection E of this section; and

14 4. Index the files of Service Oklahoma as required by
15 subsection B of this section.

16 B. Service Oklahoma shall maintain in its files the information
17 contained in all certificates of title created under the Uniform
18 Certificate of Title for Vessels Act. The information in the files
19 of Service Oklahoma shall be searchable by the hull identification
20 number of the vessel, the vessel or outboard motor number, and any
21 other method used by Service Oklahoma.

22 C. Service Oklahoma shall maintain in its files, for each
23 vessel or outboard motor for which it has created a certificate of
24 title, all title brands known to Service Oklahoma, the name of each

1 secured party known to Service Oklahoma, the name of each person
2 known to Service Oklahoma to be claiming an ownership interest, and
3 all stolen-property reports Service Oklahoma has received.

4 D. Upon request, for safety, security, or law-enforcement
5 purposes, Service Oklahoma shall provide to federal, state, or local
6 government the information in its files relating to any vessel or
7 outboard motor for which Service Oklahoma has issued a certificate
8 of title.

9 E. Except as otherwise provided by the law of this state other
10 than the Uniform Certificate of Title for Vessels Act, the
11 information required under Section 9 of this act is a public record.
12 The information provided under paragraph 3 of subsection B of
13 Section 7 of this act is not a public record.

14 SECTION 12. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 4061 of Title 63, unless there
16 is created a duplication in numbering, reads as follows:

17 A. On creation of a written certificate of title, Service
18 Oklahoma promptly shall send the certificate to the secured party of
19 record or, if none, to the owner of record, at the address indicated
20 for that person in the files of Service Oklahoma. On creation of an
21 electronic certificate of title, Service Oklahoma promptly shall
22 send a record evidencing the certificate to the owner of record and,
23 if there is one, to the secured party of record, at the address
24 indicated for that person in the files of Service Oklahoma. Service

1 Oklahoma may send the record to the person's mailing address or, if
2 indicated in the files of Service Oklahoma, an electronic address.

3 B. If Service Oklahoma creates a written certificate of title,
4 any electronic certificate of title for the vessel or outboard motor
5 is canceled and replaced by the written certificate. Service
6 Oklahoma shall maintain in the files of Service Oklahoma the date
7 and time of cancellation.

8 C. Before Service Oklahoma creates an electronic certificate of
9 title, any written certificate for the vessel or outboard motor
10 shall be surrendered to Service Oklahoma. If Service Oklahoma
11 creates an electronic certificate, Service Oklahoma shall destroy or
12 otherwise cancel the written certificate for the vessel or outboard
13 motor which has been surrendered to Service Oklahoma and maintain in
14 the files of Service Oklahoma the date and time of destruction or
15 other cancellation. If a written certificate being canceled is not
16 destroyed, Service Oklahoma shall indicate on the face of the
17 certificate that it has been canceled.

18 SECTION 13. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 4062 of Title 63, unless there
20 is created a duplication in numbering, reads as follows:

21 A certificate of title is prima facie evidence of the accuracy
22 of the information in the record that constitutes the certificate.
23
24

1 SECTION 14. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 4063 of Title 63, unless there
3 is created a duplication in numbering, reads as follows:

4 Possession of a certificate of title does not by itself provide
5 a right to obtain possession of a vessel or outboard motor.
6 Garnishment, attachment, levy, replevin, or other judicial process
7 against the certificate is not effective to determine possessory
8 rights to the vessel. The Uniform Certificate of Title for Vessels
9 Act does not prohibit enforcement under law of this state other than
10 the Uniform Certificate of Title for Vessels Act of a security
11 interest in, levy on, or foreclosure of a statutory or common-law
12 lien on a vessel or outboard motor. Absence of an indication of a
13 statutory or common-law lien on a certificate does not invalidate
14 the lien.

15 SECTION 15. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 4064 of Title 63, unless there
17 is created a duplication in numbering, reads as follows:

18 A. Except as otherwise provided in this section or Section 28
19 of this act, a security interest in a vessel may be perfected only
20 by delivery to Service Oklahoma of an application for a certificate
21 of title that identifies the secured party and otherwise complies
22 with Section 7 of this act. The security interest is perfected on
23 the later of delivery to Service Oklahoma of the application and the
24

1 applicable fee or attachment of the security interest under Section
2 1-9-203 of Title 12A of the Oklahoma Statutes.

3 B. If the interest of a person named as owner, lessor,
4 consignor, or bailor in an application for a certificate of title
5 delivered to Service Oklahoma is a security interest, the
6 application sufficiently identifies the person as a secured party.
7 Identification on the application for a certificate of a person as
8 owner, lessor, consignor, or bailor is not by itself a factor in
9 determining whether the person's interest is a security interest.

10 C. If Service Oklahoma has created a certificate of title for a
11 vessel or outboard motor, a security interest in the vessel or
12 outboard motor may be perfected by delivery to Service Oklahoma of
13 an application, on a form Service Oklahoma may require, to have the
14 security interest added to the certificate. The application shall
15 be signed by an owner of the vessel or outboard motor or by the
16 secured party and shall include:

- 17 1. The name of the owner of record;
- 18 2. The name and mailing address of the secured party;
- 19 3. The hull identification number for the vessel or identifying
20 number for outboard motor; and
- 21 4. If Service Oklahoma has created a written certificate of
22 title for the vessel or outboard motor, the certificate. If Service
23 Oklahoma has not created a written certificate of title for the
24 vessel or outboard motor, by other evidence of ownership.

1 D. A security interest perfected under subsection C of this
2 section is perfected on the later of delivery to Service Oklahoma of
3 the application and all applicable fees or attachment of the
4 security interest under Section 1-9-203 of Title 12A of the Oklahoma
5 Statutes.

6 E. On delivery of an application that complies with subsection
7 C of this section and payment of all applicable fees, Service
8 Oklahoma shall create a new certificate of title pursuant to Section
9 8 of this act and deliver the new certificate or a record evidencing
10 an electronic certificate pursuant to subsection A of Section 12 of
11 this act. Service Oklahoma shall maintain in the files of Service
12 Oklahoma the date and time of delivery of the application to Service
13 Oklahoma.

14 F. If a secured party assigns a perfected security interest in
15 a vessel or outboard motor, the receipt by Service Oklahoma of a
16 statement providing the name of the assignee as secured party is not
17 required to continue the perfected status of the security interest
18 against creditors of and transferees from the original debtor. A
19 purchaser of a vessel or outboard motor subject to a security
20 interest which obtains a release from the secured party indicated in
21 the files of Service Oklahoma or on the certificate takes free of
22 the security interest and of the rights of a transferee unless the
23 transfer is indicated in the files of Service Oklahoma or on the
24 certificate.

1 G. This section does not apply to a security interest:

2 1. Created in a vessel or outboard motor by a person during any
3 period in which the vessel or outboard motor is inventory held for
4 sale or lease by the person or is leased by the person as lessor if
5 the person is in the business of selling vessels;

6 2. In a barge for which no application for a certificate of
7 title has been delivered to Service Oklahoma; or

8 3. In a vessel or outboard motor before delivery if the vessel
9 is under construction, or completed, pursuant to contract and for
10 which no application for a certificate has been delivered to Service
11 Oklahoma.

12 H. This subsection applies if a certificate of documentation
13 for a documented vessel is deleted or canceled. If a security
14 interest in the vessel or outboard motor was valid immediately
15 before deletion or cancellation against a third party as a result of
16 compliance with 46 U.S.C., Section 31321, the security interest is
17 and remains perfected until the earlier of four (4) months after
18 cancellation of the certificate or the time the security interest
19 becomes perfected under this act.

20 I. A security interest in a vessel or outboard motor arising
21 under Section 2-401, 2-505, subsection 3 of section 2-711, or
22 subsection 5 of section 2A-508 of Title 12A of the Oklahoma Statutes
23 is perfected when it attaches but becomes unperfected when the
24 debtor obtains possession of the vessel or outboard motor, unless

1 before the debtor obtains possession the security interest is
2 perfected pursuant to subsection A or C of this section.

3 J. A security interest in a vessel or outboard motor as
4 proceeds of other collateral is perfected to the extent provided in
5 Section 1-9-315 of Title 12A of the Oklahoma Statutes.

6 K. A security interest in a vessel perfected under the law of
7 another jurisdiction is perfected to the extent provided in
8 subsection D of Section 1-9-316 of Title 12A of the Oklahoma
9 Statutes.

10 SECTION 16. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 4065 of Title 63, unless there
12 is created a duplication in numbering, reads as follows:

13 A. A secured party indicated in the files of Service Oklahoma
14 as having a security interest in a vessel shall deliver a
15 termination statement to Service Oklahoma and, on the debtor's
16 request, to the debtor, by the earlier of:

17 1. Twenty (20) days after the secured party receives a signed
18 demand from an owner for a termination statement and there is no
19 obligation secured by the vessel subject to the security interest
20 and no commitment to make an advance, incur an obligation, or
21 otherwise give value secured by the vessel or outboard motor; or

22 2. If the vessel or outboard motor is consumer goods, thirty
23 (30) days after there is no obligation secured by the vessel or
24 outboard motor and no commitment to make an advance, incur an

1 obligation, or otherwise give value secured by the vessel or
2 outboard motor.

3 B. If a written certificate of title has been created and
4 delivered to a secured party and a termination statement is required
5 under subsection A of this section, the secured party, not later
6 than the date required by subsection A of this section, shall
7 deliver the certificate to the debtor or to Service Oklahoma with
8 the statement. If the certificate is lost, stolen, mutilated,
9 destroyed, or is otherwise unavailable or illegible, the secured
10 party shall deliver with the statement, not later than the date
11 required by subsection A of this section, an application for a
12 replacement certificate meeting the requirements of Section 22 of
13 this act.

14 C. On delivery to Service Oklahoma of a termination statement
15 authorized by the secured party, the security interest to which the
16 statement relates ceases to be perfected. If the security interest
17 to which the statement relates was indicated on the certificate of
18 title, Service Oklahoma shall create a new certificate, upon request
19 of the owner, and deliver the new certificate or a record evidencing
20 an electronic certificate. Service Oklahoma shall maintain in its
21 files the date of delivery to Service Oklahoma of the statement.

22 D. A secured party that fails to comply with this section is
23 liable for any loss that the secured party had reason to know might
24 result from its failure to comply and which could not reasonably

1 have been prevented and for the cost of an application for a
2 certificate of title under Section 7 or 22 of this act.

3 SECTION 17. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 4066 of Title 63, unless there
5 is created a duplication in numbering, reads as follows:

6 A. On voluntary transfer of an ownership interest in a vessel
7 or outboard motor covered by a certificate of title, the following
8 rules apply:

9 1. If the certificate is a written certificate of title and the
10 transferor's interest is noted on the certificate, the transferor
11 promptly shall sign the certificate and deliver it to the
12 transferee. If the transferor does not have possession of the
13 certificate, the person in possession of the certificate has a duty
14 to facilitate the transferor's compliance with this paragraph. A
15 secured party does not have a duty to facilitate the transferor's
16 compliance with this paragraph if the proposed transfer is
17 prohibited by the security agreement;

18 2. If the certificate of title is an electronic certificate of
19 title, the transferor promptly shall sign and deliver to the
20 transferee a record evidencing the transfer of ownership to the
21 transferee;

22 3. The transferee has a right enforceable by specific
23 performance to require the transferor comply with paragraph 1 or 2
24 of this subsection.

1 B. The creation of a certificate of title identifying the
2 transferee as owner of record satisfies subsection A of this
3 section.

4 C. A failure to comply with subsection A of this section or to
5 apply for a new certificate of title does not render a transfer of
6 ownership of a vessel or outboard motor ineffective between the
7 parties. Except as otherwise provided in Section 18, 19, subsection
8 A of section 23, or 24 of this act, a transfer of ownership without
9 compliance with subsection A of this section is not effective
10 against another person claiming an interest in the vessel or
11 outboard motor.

12 D. A transferor that complies with subsection A of this section
13 is not liable as owner of the vessel or outboard motor for an event
14 occurring after the transfer, regardless of whether the transferee
15 applies for a new certificate of title.

16 SECTION 18. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 4067 of Title 63, unless there
18 is created a duplication in numbering, reads as follows:

19 Except as otherwise provided in Section 1-9-337 of Title 12A of
20 the Oklahoma Statutes, a certificate of title or other record
21 required or authorized by the Uniform Certificate of Title for
22 Vessels Act is effective even if it contains incorrect information
23 or does not contain required information.

SECTION 19. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 4068 of Title 63, unless there is created a duplication in numbering, reads as follows:

A. In this section, "secured party's transfer statement" means a record signed by the secured party of record stating:

1. That there has been a default on an obligation secured by the vessel;

2. The secured party of record is exercising or has exercised post-default remedies with respect to the vessel;

3. By reason of the exercise, the secured party of record has the right to transfer the ownership interest of an owner, and the name of the owner;

4. The name and last-known mailing address of the owner of record and the secured party of record;

5. The name of the transferee;

6. Other information required by subsection B of Section 7 of this act; and

7. One of the following:

a. the certificate of title is an electronic certificate,

b. the secured party does not have possession of the written certificate of title created in the name of the owner of record, or

1 c. the secured party is delivering the written
2 certificate of title to Service Oklahoma with the
3 secured party's transfer statement.

4 B. Unless Service Oklahoma rejects a secured party's transfer
5 statement for a reason stated in subsection C of Section 8 of this
6 act, Service Oklahoma shall:

7 1. Accept the statement;

8 2. Amend the files of Service Oklahoma to reflect the transfer;
9 and

10 3. If the name of the owner whose ownership interest is being
11 transferred is indicated on the certificate of title:

12 a. cancel the certificate even if the certificate has not
13 been delivered to Service Oklahoma,

14 b. create a new certificate indicating the transferee as
15 owner, and

16 c. deliver the new certificate or a record evidencing an
17 electronic certificate.

18 C. An application under subsection A of this section or the
19 creation of a certificate of title under subsection B of this
20 section is not by itself a disposition of the vessel or outboard
21 motor and does not by itself relieve the secured party of its duties
22 under Article 9 of Title 12A of the Oklahoma Statutes.

1 SECTION 20. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 4069 of Title 63, unless there
3 is created a duplication in numbering, reads as follows:

4 A. In this section:

5 1. "By operation of law" means pursuant to a law or judicial
6 order affecting ownership of a vessel or outboard motor:

7 a. because of death, divorce, or other family law
8 proceeding, merger, consolidation, dissolution, or
9 bankruptcy,

10 b. through the exercise of the rights of a lien creditor
11 or a person having a lien created by statute or rule
12 of law, or

13 c. through other legal process;

14 2. "Transfer-by-law statement" means a record signed by a
15 transferee stating that by operation of law the transferee has
16 acquired or has the right to acquire an ownership interest in a
17 vessel.

18 B. A transfer-by-law statement must contain:

19 1. The name and last-known mailing address of the owner of
20 record and the transferee and the other information required by
21 subsection B of Section 7 of this act;

22 2. Documentation sufficient to establish the transferee's
23 ownership interest or right to acquire the ownership interest;

24 3. A statement that:

- a. the certificate of title is an electronic certificate of title,
- b. the transferee does not have possession of the written certificate of title created in the name of the owner of record, or
- c. the transferee is delivering the written certificate to Service Oklahoma with the transfer-by-law statement; and

4. Except for a transfer described in subparagraph a of paragraph 1 of subsection A of this section, evidence that notification of the transfer and the intent to file the transfer-by-law statement has been sent to all persons indicated in the files of Service Oklahoma as having an interest, including a security interest, in the vessel or outboard motor.

C. Unless Service Oklahoma rejects a transfer-by-law statement for a reason stated in subsection C of Section 8 of this act or because the statement does not include documentation satisfactory to Service Oklahoma as to the transferee's ownership interest or right to acquire the ownership interest, not later than thirty (30) days after delivery to Service Oklahoma of the statement and payment of fees and taxes payable under the law of this state other than the Uniform Certificate of Title for Vessels Act in connection with the statement or with the acquisition or use of the vessel or outboard motor, Service Oklahoma shall:

1 1. Accept the statement;

2 2. Amend the files of Service Oklahoma to reflect the transfer;

3 and

4 3. If the name of the owner whose ownership interest is being
5 transferred is indicated on the certificate of title:

6 a. cancel the certificate even if the certificate has not
7 been delivered to Service Oklahoma,

8 b. create a new certificate indicating the transferee as
9 owner,

10 c. indicate on the new certificate any security interest
11 indicated on the canceled certificate, unless a court
12 order provides otherwise, and

13 d. deliver the new certificate or a record evidencing an
14 electronic certificate.

15 D. This section does not apply to a transfer of an interest in
16 a vessel or outboard motor by a secured party under Part 6 of
17 Article 9 of Title 12A of the Oklahoma Statutes.

18 SECTION 21. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 4070 of Title 63, unless there
20 is created a duplication in numbering, reads as follows:

21 A. Except as otherwise provided in Section 19 or 20 of this
22 act, if Service Oklahoma receives, unaccompanied by a signed
23 certificate of title, an application for a new certificate that
24 includes an indication of a transfer of ownership or a termination

1 statement, Service Oklahoma may create a new certificate under this
2 section only if:

3 1. All other requirements under Sections 7 and 8 of this act
4 are met;

5 2. The applicant provides an affidavit stating facts showing
6 the applicant is entitled to a transfer of ownership or termination
7 statement;

8 3. The applicant provides Service Oklahoma with satisfactory
9 evidence that notification of the application has been sent to the
10 owner of record and all persons indicated in the files of Service
11 Oklahoma as having an interest, including a security interest, in
12 the vessel, at least forty-five (45) days have passed since the
13 notification was sent, and Service Oklahoma has not received an
14 objection from any of those persons; and

15 4. The applicant submits any other information required by
16 Service Oklahoma as evidence of the applicant's ownership or right
17 to terminate the security interest, and Service Oklahoma has no
18 credible information indicating theft, fraud, or an undisclosed or
19 unsatisfied security interest, lien, or other claim to an interest
20 in the vessel.

21 B. Service Oklahoma may indicate in a certificate of title
22 created under subsection A of this section that the certificate was
23 created without submission of a signed certificate or termination
24 statement. Unless credible information indicating theft, fraud, or

1 an undisclosed or unsatisfied security interest, lien, or other
2 claim to an interest in the vessel is delivered to Service Oklahoma
3 not later than one (1) year after creation of the certificate, on
4 request in a form and manner required by Service Oklahoma, Service
5 Oklahoma shall remove the indication from the certificate.

6 C. Unless Service Oklahoma determines that the value of a
7 vessel or outboard motor is less than Five Thousand Dollars
8 (\$5,000.00) by using the method to determine value for excise tax in
9 Section 4105 of Title 63 of the Oklahoma Statutes, before Service
10 Oklahoma creates a certificate of title under subsection A of this
11 section, Service Oklahoma may require the applicant to post a bond
12 or provide an equivalent source of indemnity or security. The bond,
13 indemnity, or other security may not exceed twice the value of the
14 vessel or outboard motor as determined by Service Oklahoma. The
15 bond, indemnity, or other security shall be in a form required by
16 Service Oklahoma and provide for indemnification of any owner,
17 purchaser, or other claimant for any expense, loss, delay, or
18 damage, including reasonable attorney fees and costs, but not
19 including incidental or consequential damages, resulting from
20 creation or amendment of the certificate.

21 D. Unless Service Oklahoma receives a claim for indemnity not
22 later than one (1) year after creation of a certificate of title
23 under subsection A of this section, on request in a form and manner
24

1 required by Service Oklahoma, Service Oklahoma shall release any
2 bond, indemnity, or other security.

3 SECTION 22. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 4071 of Title 63, unless there
5 is created a duplication in numbering, reads as follows:

6 A. If a written certificate of title is lost, stolen,
7 mutilated, destroyed, or otherwise becomes unavailable or illegible,
8 the secured party of record or, if no secured party is indicated in
9 the files of Service Oklahoma, the owner of record may apply for
10 and, by furnishing information satisfactory to Service Oklahoma,
11 obtain a replacement certificate in the name of the owner of record.

12 B. An applicant for a replacement certificate of title shall
13 sign the application, and, except as otherwise permitted by Service
14 Oklahoma, the application shall comply with Section 7 of this act.
15 The application shall include the existing certificate unless the
16 certificate is lost, stolen, mutilated, destroyed, or otherwise
17 unavailable.

18 C. A replacement certificate of title created by Service
19 Oklahoma shall comply with Section 9 of this act and indicate on the
20 face of the certificate that it is a replacement certificate.

21 D. If a person receiving a replacement certificate of title
22 subsequently obtains possession of the original written certificate,
23 the person promptly shall destroy the original certificate of title.

1 SECTION 23. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 4072 of Title 63, unless there
3 is created a duplication in numbering, reads as follows:

4 A. A buyer in ordinary course of business has the protections
5 afforded by subsection 2 of Section 2-403 and subsection a of
6 Section 1-9-320 of Title 12A of the Oklahoma Statutes even if an
7 existing certificate of title was not signed and delivered to the
8 buyer or a new certificate listing the buyer as owner of record was
9 not created.

10 B. Except as otherwise provided in Sections 17 and 24 of this
11 act, the rights of a purchaser of a vessel which is not a buyer in
12 ordinary course of business or a lien creditor are governed by
13 Uniform Commercial Code.

14 SECTION 24. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 4073 of Title 63, unless there
16 is created a duplication in numbering, reads as follows:

17 A. Subject to subsection B of this section, the effect of
18 perfection and nonperfection of a security interest and the priority
19 of a perfected or unperfected security interest with respect to the
20 rights of a purchaser or creditor, including a lien creditor, is
21 governed by the Uniform Commercial Code of Title 12A of the Oklahoma
22 Statutes.

23 B. If, while a security interest in a vessel or outboard motor
24 is perfected by any method under this act, Service Oklahoma creates

1 a certificate of title that does not indicate that the vessel or
2 outboard motor is subject to the security interest or contain a
3 statement that it may be subject to security interests not indicated
4 on the certificate:

5 1. A buyer of the vessel or outboard motor, other than a person
6 in the business of selling or leasing vessels or outboard motors of
7 that kind, takes free of the security interest if the buyer, acting
8 in good faith and without knowledge of the security interest, gives
9 value and receives possession of the vessel or outboard motor; and

10 2. The security interest is subordinate to a conflicting
11 security interest in the vessel or outboard motor that is perfected
12 under Section 15 of this act after creation of the certificate and
13 without the conflicting secured party's knowledge of the security
14 interest.

15 SECTION 25. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 4074 of Title 63, unless there
17 is created a duplication in numbering, reads as follows:

18 A. Service Oklahoma shall retain the evidence used to establish
19 the accuracy of the information in its files relating to the current
20 ownership of a vessel or outboard motor and the information on the
21 certificate of title.

22 B. Service Oklahoma shall retain in its files all information
23 regarding a security interest in a vessel or outboard motor for at
24 least ten (10) years after Service Oklahoma receives a termination

1 statement regarding the security interest. The information shall be
2 accessible by the hull identification number for the vessel or
3 identifying number for an outboard motor and any other methods
4 provided by Service Oklahoma.

5 C. If a person submits a record to Service Oklahoma, or submits
6 information that is accepted by Service Oklahoma, and requests an
7 acknowledgment of the filing or submission, Service Oklahoma shall
8 send to the person an acknowledgment showing the hull identification
9 number of the vessel or identifying number of an outboard motor to
10 which the record or submission relates, the information in the filed
11 record or submission, and the date the record was received or the
12 submission accepted. A request under this section shall contain the
13 hull identification number or identifying outboard motor number and
14 be delivered by means authorized by Service Oklahoma.

15 D. Service Oklahoma shall send or otherwise make available in a
16 record the following information to any person that requests it and
17 pays the applicable fee:

18 1. Whether the files of Service Oklahoma indicate, as of a date
19 and time specified by Service Oklahoma, but not a date earlier than
20 ten (10) days before Service Oklahoma received the request, any
21 certificate of title, security interest, termination statement, or
22 title brand that relates to a vessel or outboard motor:
23
24

- a. identified by a hull identification number or identifying number of an outboard motor or designated in the request,
- b. identified by a vessel or outboard motor number designated in the request, or
- c. owned by a person designated in the request;

2. With respect to the vessel or outboard motor:

- a. the name and address of any owner as indicated in the files of Service Oklahoma or on the certificate of title,
- b. the name and address of any secured party as indicated in the files of Service Oklahoma or on the certificate, and the effective date of the information, and
- c. a copy of any termination statement indicated in the files of Service Oklahoma and the effective date of the termination statement; and

3. With respect to the vessel or outboard motor, a copy of any certificate of origin, secured party transfer statement, transfer-by-law statement under Section 20 of this act, and other evidence of previous or current transfers of ownership.

E. In responding to a request under this section, Service Oklahoma may provide the requested information in any medium. On request, Service Oklahoma shall send the requested information in a

1 record that is self-authenticating under Section 2902 of Title 12 of
2 the Oklahoma Statutes.

3 SECTION 26. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 4075 of Title 63, unless there
5 is created a duplication in numbering, reads as follows:

6 In applying and construing this uniform act, consideration shall
7 be given to the need to promote uniformity of the law with respect
8 to its subject matter among states that enact it.

9 SECTION 27. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 4076 of Title 63, unless there
11 is created a duplication in numbering, reads as follows:

12 The Uniform Certificate of Title for Vessels Act modifies,
13 limits, and supersedes the federal Electronic Signatures in Global
14 and National Commerce Act, 15 U.S.C., Section 7001, et seq., but
15 does not modify, limit, or supersede Section 101(c) of that act, 15
16 U.S.C., Section 7001(c), or authorize electronic delivery of any of
17 the notices described in Section 103(b) of that act, 15 U.S.C.,
18 Section 7003(b).

19 SECTION 28. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 4077 of Title 63, unless there
21 is created a duplication in numbering, reads as follows:

22 A. The rights, duties, and interests flowing from a
23 transaction, certificate of title, or record relating to a vessel or
24 outboard motor which was validly entered into or created before the

1 effective date of the Uniform Certificate of Title for Vessels Act
2 and would be subject to this act if it had been entered into or
3 created on or after the effective date of this act, remain valid on
4 and after the effective date of this act.

5 B. This act does not affect an action or proceeding commenced
6 before the effective date of this act.

7 C. Except as otherwise provided in subsection D of this
8 section, a security interest that is enforceable immediately before
9 the effective date of this act and would have priority over the
10 rights of a person that becomes a lien creditor at that time is a
11 perfected security interest under this act.

12 D. A security interest perfected immediately before the
13 effective date of this act remains perfected until the earlier of:

14 1. The time perfection would have ceased under the law under
15 which the security interest was perfected; or

16 2. Three (3) years after the effective date of this act.

17 E. This act does not affect the priority of a security interest
18 in a vessel or outboard motor if immediately before the effective
19 date of this act the security interest is enforceable and perfected,
20 and that priority is established.

21 SECTION 29. AMENDATORY 43 O.S. 2021, Section 139, is
22 amended to read as follows:

23 Section 139. The Legislature finds and declares that child
24 support is a basic legal right of the state's parents and children,

1 that mothers and fathers have a legal obligation to provide
2 financial support for their children and that child support payments
3 can have a substantial impact on child poverty and state welfare
4 expenditures. It is therefore the Legislature's intent to encourage
5 payment of child support to decrease overall costs to the state's
6 taxpayers while increasing the amount of financial support collected
7 for the state's children by authorizing the district courts of this
8 state and the Department of Human Services to order the revocation,
9 suspension, nonissuance or nonrenewal of any recreational license or
10 permit, or permit including, but not limited to, a hunting and
11 fishing license or other authorization issued pursuant to the
12 Oklahoma Wildlife Conservation Code, Section 1-101 et seq. of Title
13 29 of the Oklahoma Statutes, and certificates of title for vessels
14 and motors issued pursuant to the Uniform Certificate of Title for
15 Vessels Act and other licenses of registration issued pursuant to
16 the Oklahoma Vessel and Motor Registration Act, Section 4001 et seq.
17 of Title 63 of the Oklahoma Statutes, or to order probation for a
18 parent who is in noncompliance with an order for support for at
19 least ninety (90) days or failing, after receiving appropriate
20 notice to comply with subpoenas or warrants relating to paternity or
21 child support proceedings.

22 SECTION 30. AMENDATORY 43 O.S. 2021, Section 139.1, is
23 amended to read as follows:

24

1 Section 139.1. A. As used in this section and Section 6-201.1
2 of Title 47 of the Oklahoma Statutes:

3 1. "Licensing board" means any bureau, department, division,
4 board, agency or commission of this state or of a municipality in
5 this state that issues a license;

6 2. "Noncompliance with an order for support" means that the
7 obligor has failed to make child support payments required by a
8 child support order in an amount equal to the child support payable
9 for at least ninety (90) days or has failed to make full payments
10 pursuant to a court-ordered payment plan for at least ninety (90)
11 days or has failed to obtain or maintain health insurance coverage
12 as required by an order for support for at least ninety (90) days or
13 has failed, after receiving appropriate notice to comply with
14 subpoenas or orders relating to paternity or child support
15 proceedings or has failed to comply with an order to submit to
16 genetic testing to determine paternity;

17 3. "Order for support" means any judgment or order for the
18 support of dependent children or an order to submit to genetic
19 testing to determine paternity issued by any court of this state or
20 other state or any judgment or order issued in accordance with an
21 administrative procedure established by state law that affords
22 substantial due process and is subject to judicial review;

23 4. "License" means any recreational license or permit
24 including, but not limited to, a hunting and fishing license or

1 other authorization issued pursuant to the Oklahoma Wildlife
2 Conservation Code, or certificates of title for vessels and motors
3 issued pursuant to the Uniform Certificate of Title for Vessels Act
4 and other licenses or registrations issued pursuant to the Oklahoma
5 Vessel and Motor Registration Act;

6 5. "Obligor" means the person who is required to make payments
7 or comply with other provisions of an order for support;

8 6. "Oklahoma Child Support Services (OCSS)" means the state
9 agency designated to administer a statewide plan for child support
10 pursuant to Section 237 of Title 56 of the Oklahoma Statutes;

11 7. "Person entitled" means:

12 a. a person to whom a support debt or support obligation
13 is owed,

14 b. the OCSS or a public agency of another state that has
15 the right to receive current or accrued support
16 payments or that is providing support enforcement
17 services, or

18 c. a person designated in a support order or as otherwise
19 specified by the court; and

20 8. "Payment plan" includes, but is not limited to, a plan
21 approved by the court that provides sufficient security to ensure
22 compliance with a support order and/or that incorporates voluntary
23 or involuntary income assignment or a similar plan for periodic
24

1 payment on an arrearage and, if applicable, current and future
2 support.

3 B. 1. Except as otherwise provided by this subsection, the
4 district courts of this state are hereby authorized to order the
5 revocation, suspension, nonissuance or nonrenewal of a license or
6 the placement of the obligor on probation who is in noncompliance
7 with an order for support.

8 2. The remedy under this section is in addition to any other
9 enforcement remedy available to the court.

10 C. 1. At any hearing involving the support of a child, if the
11 district court finds evidence presented at the hearing that an
12 obligor is in noncompliance with an order for support and the
13 obligor is licensed by any licensing board, the court, in addition
14 to any other enforcement action available, may suspend or revoke the
15 license of the obligor who is in noncompliance with the order of
16 support or place the obligor on probation pursuant to paragraph 2 of
17 this subsection.

18 2. a. To be placed on probation, the obligor shall agree to
19 a payment plan to:

20 (1) make all future child support payments as
21 required by the current order during the period
22 of probation, and

23 (2) pay the full amount of the arrearage:
24

1 (a) by lump sum by a date certain, if the court
2 determines the obligor has the ability, or
3 (b) by making monthly payments in addition to
4 the monthly child support amount pursuant to
5 Section 137 of this title.

6 b. The payments required to be made pursuant to this
7 section shall continue until the child support
8 arrearage and interest which was the subject of the
9 license revocation action have been paid in full.

10 3. If the court orders probation, the appropriate licensing
11 board shall not be notified and no action is required of that board.

12 4. Probation shall be conditioned upon full compliance with the
13 order. If the court grants probation, the probationary period shall
14 not exceed three (3) years.

15 5. If the obligor is placed on probation, the obligee or OCSS
16 may request a hearing at any time to review the status of the
17 obligor's compliance with the payment plan and to request immediate
18 suspension or revocation of the obligor's license. The obligor
19 shall be served with notice of the hearing by regular mail to the
20 obligor's address of record pursuant to Section 112A of this title.

21 6. If, by the completion of time allotted for the probationary
22 period, the obligor has failed to fully comply with the terms of
23 probation, the licenses of the obligor shall be automatically
24 suspended or revoked without further hearing. If the licenses of

1 the obligor are suspended or revoked, the obligor may thereafter
2 apply for reinstatement in compliance with subsection D or E of this
3 section.

4 D. When all support due is paid in full and the obligor has
5 complied with all other provisions of the order for support, the
6 obligor, the obligee or OCSS may file a motion with the court for
7 reinstatement of the obligor's licenses or termination of probation
8 and the motion shall be set for hearing. If the court finds the
9 obligor has paid all support due in full and has complied with all
10 other provisions of the order for support, the court shall reinstate
11 the obligor's licenses or terminate the probation.

12 E. 1. An obligor whose licenses have been suspended or revoked
13 may file a motion with the court for reinstatement of the licenses
14 of the obligor prior to payment in full of all support due and the
15 motion shall be set for hearing.

16 2. The court may reinstate the licenses of the obligor if the
17 obligor has:

- 18 a. paid the current child support and the monthly
19 arrearage payments each month for the current month
20 and two (2) months immediately preceding, or paid an
21 amount equivalent to three (3) months of child support
22 and arrearage payments which satisfies the current
23 child support and monthly arrearage payments for the
24

1 current month and two (2) months immediately
2 preceding,

3 b. disclosed all information regarding health insurance
4 availability and obtained and maintained health
5 insurance coverage required by an order for support,

6 c. complied with all subpoenas and orders relating to
7 paternity or child support proceedings,

8 d. complied with all orders to submit to genetic testing
9 to determine paternity, and

10 e. disclosed all employment and address information.

11 3. If the court terminates the order of suspension, revocation,
12 nonissuance or nonrenewal, it shall place the obligor on probation,
13 conditioned upon compliance with any payment plan and the provisions
14 of the order for support.

15 4. If the obligor fails to comply with the terms of probation,
16 the court may refuse to reinstate the licenses of the obligor unless
17 the obligor makes additional payments in an amount determined by the
18 court to be sufficient to ensure future compliance, and the obligor
19 complies with the other terms set by the court.

20 F. The obligor shall serve on the custodian or the state a copy
21 of the motion for reinstatement of the licenses of the obligor and
22 notice of hearing pursuant to Section 2005 of Title 12 of the
23 Oklahoma Statutes, or if there is an address of record, by regular
24 mail to the address of record on file with the central case registry

1 pursuant to Section 112A of this title. When child support services
2 are being provided pursuant to Section 237 of Title 56 of the
3 Oklahoma Statutes, the obligor shall serve a copy of the motion for
4 reinstatement of the licenses of the obligor on OCSS.

5 G. If the court orders termination of the order of suspension
6 or revocation, the obligor shall send a copy of the order
7 reinstating the licenses of the obligor to the licensing board, the
8 custodian and OCSS when child support services are being provided
9 pursuant to Section 237 of Title 56 of the Oklahoma Statutes.

10 H. Entry of this order does not limit the ability of the court
11 to issue a new order requiring the licensing board to revoke or
12 suspend the license of the same obligor in the event of another
13 delinquency or failure to comply.

14 I. Upon receipt of a court order to suspend or revoke the
15 license of an obligor, the licensing board shall comply with the
16 order by:

17 1. Determining if the licensing board has issued a license to
18 the individual whose name appears on the order for support;

19 2. Notifying the obligor of the suspension or revocation;

20 3. Demanding surrender of the license, if required;

21 4. Entering the suspension or revocation of the license on the
22 appropriate records; and

23 5. Reporting the suspension or revocation of the license as
24 appropriate.

1 J. Upon receipt of a court order to not issue or not renew the
2 license of an obligor, the licensing board shall implement by:

3 1. Determining if the licensing board has received an
4 application for issuance or renewal of a license from the individual
5 whose name appears on the order of support;

6 2. Notifying the obligor of the nonissuance or nonrenewal; and

7 3. Entering the nonissuance or nonrenewal of the license as
8 appropriate.

9 K. An order, issued by the court, directing the licensing board
10 to suspend, revoke, not issue or not renew the license of the
11 obligor shall be processed and implemented by the licensing board
12 without any additional review or hearing and shall continue until
13 the court or appellate court advises the licensing board by order
14 that the suspension, revocation, nonissuance or nonrenewal is
15 terminated.

16 L. The licensing board has no jurisdiction to modify, remand,
17 reverse, vacate, or stay the order of the court for the suspension,
18 revocation, nonissuance or nonrenewal of a license.

19 M. In the event of suspension, revocation, nonissuance or
20 nonrenewal of a license, any funds paid by the obligor to the
21 licensing board for costs related to issuance, renewal, or
22 maintenance of a license shall not be refunded to the obligor.

23 N. A licensing board may charge the obligor a fee to cover the
24 administrative costs incurred by the licensing board to administer

1 the provisions of this section. Fees collected pursuant to this
2 section by a licensing board which has an agency revolving fund
3 shall be deposited in the agency revolving fund for the use by the
4 licensing board to pay the costs of administering this section.
5 Otherwise, the administrative costs shall be deposited in the
6 General Revenue Fund of the state.

7 O. Each licensing board shall promulgate rules necessary for
8 the implementation and administration of this section.

9 P. The licensing board is exempt from liability to the obligor
10 for activities conducted in compliance with Section 139 et seq. of
11 this title.

12 Q. A final order entered pursuant to this section may be
13 appealed to the Supreme Court of Oklahoma pursuant to Section 990A
14 of Title 12 of the Oklahoma Statutes.

15 SECTION 31. AMENDATORY 47 O.S. 2021, Section 2-105.6, is
16 amended to read as follows:

17 Section 2-105.6. A. There is hereby created within the
18 Oklahoma Highway Patrol Division of the Department of Public Safety
19 a Marine Enforcement Section which shall consist of such employees
20 as may be necessary to enforce the provisions of Section 4001 et
21 seq., Section 4101 et seq., and Section 4200 et seq. of Title 63 of
22 the Oklahoma Statutes. All commissioned officers of the Marine
23 Enforcement Section as designated by the Commissioner shall have the
24 authority to stop and board any vessel subject to the Uniform

1 Certificate of Title for Vessels Act and Section 4001 et seq. of
2 Title 63 of the Oklahoma Statutes and make any necessary arrest for
3 violations of the Uniform Certificate of Title for Vessels Act and
4 Section 4001 et seq. of Title 63 of the Oklahoma Statutes or the
5 rules promulgated by the Department of Public Safety or the
6 Department of Wildlife Conservation or take any other action within
7 their lawful authority. Any statutory references to the Oklahoma
8 Lake Patrol Division or the Lake Patrol Section of the Oklahoma
9 Highway Patrol Division shall mean the Marine Enforcement Section of
10 the Oklahoma Highway Patrol Division of the Department of Public
11 Safety.

12 B. All commissioned officers of the Marine Enforcement Section
13 of the Oklahoma Highway Patrol Division of the Department of Public
14 Safety shall have, in addition to their primary duty as prescribed
15 in subsection A of this section, a secondary duty to enforce all
16 state statutes, to make arrests for violations and to perform other
17 duties as prescribed by the Commissioner.

18 C. The annual salaries for the commissioned officers within the
19 Marine Enforcement Section of the Oklahoma Highway Patrol Division
20 of the Department of Public Safety shall be in accordance and
21 conformity with Section 2-105.4 of this title.

22 D. The provisions of this section shall supersede all existing
23 laws covering the salaries for the commissioned officers in the
24

1 Marine Enforcement Section of the Oklahoma Highway Patrol Division
2 of the Department of Public Safety.

3 SECTION 32. AMENDATORY 56 O.S. 2021, Section 237.7, is
4 amended to read as follows:

5 Section 237.7. For the purposes of Sections 237 through 240.23
6 of this title:

7 1. The "Child Support Enforcement Division of the Department of
8 Human Services", hereinafter referred to as the "Division" or as the
9 "Department", is the state agency designated to administer the child
10 support enforcement program for the State of Oklahoma and its
11 District Offices, which may be administered through contract or
12 cooperative agreements. The District Offices provide enforcement
13 services to individuals receiving Temporary Assistance for Needy
14 Families, hereinafter referred to as "TANF", and to individuals not
15 receiving TANF who have made proper application for enforcement
16 services to the Division;

17 2. "Director" means the Director of the Department of Human
18 Services who shall have the authority to enter orders in appropriate
19 cases or as otherwise provided by law, without the necessity of an
20 additional signature of a district or administrative judge;

21 3. "Office of Administrative Hearings: Child Support (Legal
22 Division, Department of Human Services, State of Oklahoma)",
23 hereinafter referred to as "OAH", conducts child support enforcement
24

1 administrative hearings. All hearings are conducted by
2 administrative law judges assigned to OAH;

3 4. "Support debt" means a debt owed to the State of Oklahoma by
4 the natural, legal or adoptive parents who are responsible for
5 support of a child or children receiving public assistance money
6 from the Department or the reasonable expenses of providing for a
7 child or children. The amount of the debt shall be determined in
8 accordance with the provisions of Section 118 of Title 43 of the
9 Oklahoma Statutes;

10 5. "Arrearage" or "past due support" means the total amount of
11 unpaid support obligations;

12 6. "Delinquency" means any payment under an order for support
13 which becomes due and remains unpaid;

14 7. a. "Gross income" or "income" means income from any
15 source and includes, but is not limited to, income
16 from salaries, wages, commissions, bonuses, dividends,
17 severance pay, pensions, rent, interest income, trust
18 income, annuities, compensation as an independent
19 contractor, social security benefits, workers'
20 compensation benefits, unemployment insurance
21 benefits, disability insurance benefits, gifts,
22 prizes, any form of periodic payment to an individual
23 regardless of source, and any other payments made by
24 any person, private entity, federal or state

1 government, any unit of local government, school
2 district, or any entity created by law. Income
3 specifically excluded are actual child support
4 received for children not before the court and
5 benefits received from means-tested public assistance
6 programs, including but not limited to TANF,
7 Supplemental Security Income (SSI), Food Stamps,
8 General Assistance and State Supplemental Payments for
9 Aged, Blind, and the Disabled.

10 b. For purposes of computing gross income of the parents,
11 gross income shall include for each parent all actual
12 monthly income described in this paragraph, the
13 average of the gross monthly income for the time
14 actually employed during the previous three (3) years,
15 or the minimum wage paid for a forty-hour week,
16 whichever is the most equitable. If equitable, gross
17 monthly income for either parent may be imputed in an
18 amount that a person with comparable education,
19 training, and experience could reasonably expect to
20 earn. If a person is permanently physically or
21 mentally incapacitated, the child support obligation
22 shall be computed on the basis of actual monthly gross
23 income;

1 8. "Earnings" means amounts paid to a person as an employee,
2 including wages and salary;

3 9. "Disposable income" means income or earnings less any
4 amounts required by law to be withheld including, but not limited
5 to, federal, state, and local taxes, Social Security, and public
6 assistance payments;

7 10. "Obligor" means the person who is required to make payments
8 under an order for support or the natural, legal, or adoptive
9 parents who are responsible for the support of a child or children;

10 11. "Obligee" or "Person entitled" means:

11 a. a person to whom a support debt or support obligation
12 is owed,

13 b. the Department of Human Services or a public agency of
14 another state that has the right to receive current or
15 accrued support payments or that is providing support
16 enforcement services, or

17 c. a person designated in a support order or as otherwise
18 specified by the court;

19 12. "Payor" means any person or entity paying monies, income,
20 or earnings to an obligor. In the case of a self-employed person,
21 the "payor" and "obligor" may be the same person;

22 13. "Support order" means an order for the payment of support
23 issued by a district or administrative court of this state or by any
24 court or agency of another state;

1 14. "Income assignment" means an assignment of a portion of the
2 monies, income, or periodic earnings due and owing to the obligor to
3 the person entitled to the support or to another person or entity
4 designated by the support order or assignment for payment of
5 support, the support debt, or arrearages. In all child support
6 cases wherein child support is being enforced pursuant to the state
7 plan, the income of any obligor required by court or administrative
8 order to pay support shall be subject by operation of law to
9 immediate income assignments regardless of whether support payments
10 by such obligor are in arrears. The assignment shall be in an
11 amount which is sufficient to meet the periodic child support
12 payments, other maintenance payments, payments on support debt and
13 collection of past due support monies that have accrued under a
14 district or administrative court order. An income assignment shall
15 be made a part of a support order or any order granting a judgment
16 for a support debt or confirming the amount of the past due support,
17 or a review or modification of a support order pursuant to Section
18 118.1 of Title 43 of the Oklahoma Statutes;

19 15. "Voluntary acknowledgment" means a written acknowledgment
20 executed by the obligor wherein the obligor acknowledges paternity,
21 support liability, a support debt, or arrearage amount, and agrees
22 to a judgment and an immediate income assignment to pay monthly
23 support and payments on the support debt or arrearage judgments;
24

1 16. "Notice" means a written announcement served upon an
2 obligor, a custodial person or any person or entity which might be
3 affected by the noticed proceeding;

4 17. "Licensing board" means any bureau, department, division,
5 board, agency, or commission of this state or of a municipality in
6 this state that issues a license;

7 18. "License" means a license, certificate, registration,
8 permit, approval, or other similar document issued by a licensing
9 board granting to an individual a right or privilege to engage in a
10 profession, occupation, business, or industry, or any recreational
11 license or permit including, but not limited to, a hunting and
12 fishing license or other authorization issued pursuant to the
13 Oklahoma Wildlife Conservation Code and certificates of ~~Title~~ title
14 for vessels and motors issued pursuant to the Uniform Certificate of
15 Title for Vessels Act and other licenses or registrations issued
16 pursuant to the Oklahoma Vessel and Motor Registration Act or a
17 driver license or other permit issued pursuant to Title 47 of the
18 Oklahoma Statutes;

19 19. "Commission" means the Commission for Human Services;

20 20. "Payment plan" includes, but is not limited to, a plan
21 approved by the support enforcement entity that provides sufficient
22 security to ensure compliance with a support order or that
23 incorporates voluntary or involuntary income assignment or a similar
24

1 plan for periodic payment of past-due support and, if applicable,
2 current and future support; and

3 21. "Support" means all payments or other obligations due and
4 owing to the obligee or person entitled by the obligor pursuant to a
5 support order, and may include, but is not limited to, support
6 alimony payments, child support, as defined by Section 1170 of Title
7 12 of the Oklahoma Statutes, and other expenses, requirements and
8 obligations as specified in Section 118 of Title 43 of the Oklahoma
9 Statutes.

10 SECTION 33. AMENDATORY 63 O.S. 2021, Section 4003, as
11 amended by Section 200, Chapter 282, O.S.L. 2022 (63 O.S. Supp.
12 2025, Section 4003), is amended to read as follows:

13 Section 4003. A. 1. Except as otherwise provided in Sections
14 4005 and 4024 of this title, every vessel in this state,
15 irrespective of whether used on waters of this state, is required to
16 be ~~titled~~ registered within thirty (30) calendar days from the
17 purchase date or from the date the owner becomes a resident of this
18 state and annually registered under the provisions of the Oklahoma
19 Vessel and Motor Registration Act, Section 4002 et seq. of this
20 title. The owner of any such vessel shall file an application as
21 required by the Oklahoma Vessel and Motor Registration Act with
22 Service Oklahoma for ~~a certificate of title,~~ a number, and for the
23 annual registration for such vessel on forms prescribed and
24 furnished by Service Oklahoma.

1 2. The provisions of this subsection shall not apply to new
2 vessels in the inventory or stock of licensed dealers for resale
3 which new vessels shall be subject to ad valorem taxation.

4 3. Said provisions shall apply to and cover all used vessels in
5 the possession and inventory of a dealer except as provided for in
6 Section 4036 of this title.

7 B. 1. Except as otherwise provided in Sections 4005 and 4024
8 of this title, every outboard motor in excess of ten (10) horsepower
9 in this state, irrespective of whether used on waters of this state,
10 is required to be ~~titled~~ registered within thirty (30) calendar days
11 from the purchase date, or from the expiration of registration, or
12 from the date the owner becomes a resident of this state ~~and~~
13 ~~registered~~ under the provisions of the Oklahoma Vessel and Motor
14 Registration Act.

15 The owner of any such motor shall file an application as
16 required by the Oklahoma Vessel and Motor Registration Act for a
17 ~~certificate of title and for~~ an annual registration for such vessel
18 on forms prescribed and furnished by Service Oklahoma.

19 2. The provisions of this subsection shall not apply to new
20 motors in the inventory or stock of licensed dealers for resale
21 which such new motors shall be subject to ad valorem taxation.

22 3. Said provisions shall apply to and cover all used motors in
23 the possession and inventory of a dealer except as provided for in
24 Section 4036 of this title.

1 C. Any person engaged in the business of selling, trading,
2 renting with option to purchase, or attempting to or negotiating
3 sales or exchanges of interests in new or used vessels or motors, or
4 new and used vessels or motors, or any combination thereof shall be
5 licensed pursuant to Section 4033 of this title.

6 SECTION 34. AMENDATORY Section 2, Chapter 179, O.S.L.
7 2022 (63 O.S. Supp. 2025, Section 4003A), is amended to read as
8 follows:

9 Section 4003A. On or before July 1, 2022, the Oklahoma Tax
10 Commission shall implement a program which will permit the
11 electronic filing, storage, and delivery of boat and motor
12 certificates of title and allow a lienholder to perfect, assign, and
13 release a lien on a boat or motor in lieu of submission and
14 maintenance of paper documents as otherwise provided in the
15 provisions of ~~Section 4008 et seq. of Title 63 of the Oklahoma~~
16 ~~Statutes~~ the Uniform Certificate of Title for Vessels Act. The
17 provisions of this section shall apply to certificates of title
18 issued and liens filed after June 30, 2022. The Tax Commission
19 shall promulgate rules to implement the provisions of this section.

20 SECTION 35. AMENDATORY 63 O.S. 2021, Section 4004, as
21 amended by Section 201, Chapter 282, O.S.L. 2022 (63 O.S. Supp.
22 2025, Section 4004), is amended to read as follows:

23 Section 4004. A. It shall be the duty of Service Oklahoma, and
24 Service Oklahoma is hereby granted authority and jurisdiction to

1 administer the Uniform Certificate of Title for Vessels Act and the
2 Oklahoma Vessel and Motor Registration Act, Section 4002 et seq. of
3 this title, with the aid of its licensed operators and all duly
4 authorized peace officers of this state.

5 B. Service Oklahoma is hereby authorized to promulgate all
6 necessary rules and prepare forms and records to enact and enforce
7 the provisions of the Uniform Certificate of Title for Vessels Act
8 and the Oklahoma Vessel and Motor Registration Act.

9 C. All duly authorized peace officers of this state are hereby
10 granted authority and jurisdiction to enforce the provisions of and
11 any rules pertaining to the Uniform Certificate of Title for Vessels
12 Act and the Oklahoma Vessel and Motor Registration Act within their
13 jurisdiction.

14 D. Service Oklahoma shall have the authority in cases of
15 dispute to determine the factory-delivered price of any vessel or
16 motor.

17 E. Service Oklahoma shall periodically cause to be prepared and
18 shall distribute to each authorized licensed operator a manual of
19 procedure containing instructions, directions and guidelines to be
20 followed by all licensed operators in the performance of their
21 duties regarding vessels and motors.

22 F. All rules promulgated pursuant to the provisions of this act
23 shall comply with Article 1 of the Administrative Procedures Act,
24 Section 250 et seq. of Title 75 of the Oklahoma Statutes. In

1 addition to other filing requirements of law, such rules shall be
2 filed with the Commissioner of Public Safety.

3 SECTION 36. AMENDATORY 63 O.S. 2021, Section 4005, is
4 amended to read as follows:

5 Section 4005. A. A vessel or motor shall not be required to be
6 titled and registered pursuant to the provisions of the Uniform
7 Certificate of Title for Vessels Act and the Oklahoma Vessel and
8 Motor Registration Act if:

9 1. Such vessel or motor is owned by the United States, a state
10 other than the State of Oklahoma, any agency thereof, or any
11 subdivision of the state; provided, however, if such vessel is used
12 for recreational or rental purposes on the waters of this state, the
13 vessel shall be registered and numbered in accordance with Section
14 4002 et seq. of this title;

15 2. Such vessel or motor is owned by a visiting nonresident and
16 is currently registered in another state. Provided that if any such
17 vessel or motor remains in Oklahoma in excess of sixty (60) calendar
18 days, such vessel or motor shall be registered pursuant to the
19 provisions of the Oklahoma Vessel and Motor Registration Act and the
20 registration fees due thereon from the date of entry into Oklahoma
21 must be paid;

22 3. Such vessel or motor is from a country other than the United
23 States provided such vessel or motor does not remain in Oklahoma in
24 excess of sixty (60) calendar days;

1 4. Such vessel is used exclusively and solely as a lifeboat;

2 5. Such vessel is used exclusively and solely for racing
3 purposes;

4 6. Such vessel is a commercial flotation device which is issued
5 a license by the Grand River Dam Authority pursuant to the
6 provisions of the Scenic Rivers Act; provided, a commercial
7 flotation device shall be required to be titled pursuant to the
8 provisions of ~~Section 4008 of this title~~ the Uniform Certificate of
9 Title for Vessels Act;

10 7. Such vessel is a documented vessel provided such documented
11 vessel shall be required to be registered pursuant to the provisions
12 of Section 4016 of this title; or

13 8. Such vessel is a canoe, kayak, kiteboard or paddleboat as
14 defined in Section 4002 of this title, except that such vessels,
15 when powered by any means other than human power, shall be titled
16 and registered pursuant to the provisions of the Uniform Certificate
17 of Title for Vessels Act and the Oklahoma Vessel and Motor
18 Registration Act.

19 B. Motors classified as inboard motors shall not be required to
20 be titled pursuant to the Uniform Certificate of Title for Vessels
21 Act and the or registered pursuant to the provisions of the Oklahoma
22 Vessel and Motor Registration Act.

23 C. All vessels and motors which are owned by the State of
24 Oklahoma, its agencies or departments, or political subdivisions

1 thereof, or which, under the law, would be exempt from direct ad
2 valorem taxation, shall be titled and registered pursuant to the
3 provisions of the Uniform Certificate of Title for Vessels Act and
4 the Oklahoma Vessel and Motor Registration Act. Provided, all
5 vessels and motors titled and registered to the Department of Public
6 Safety shall be exempt from all registration fees.

7 D. All other vessels shall be titled and registered pursuant to
8 the provisions of the Uniform Certificate of Title for Vessels Act
9 and the Oklahoma Vessel and Motor Registration Act.

10 E. At the request of the owner, any vessel exempt from the
11 title and registration provisions of this section shall be titled
12 and registered pursuant to the provisions of the Uniform Certificate
13 of Title for Vessels Act and the Oklahoma Vessel and Motor
14 Registration Act for the purposes of proof of ownership or vessel
15 identification. All title and registration fees shall be paid by
16 the owner of the vessel.

17 SECTION 37. AMENDATORY 63 O.S. 2021, Section 4006, as
18 amended by Section 202, Chapter 282, O.S.L. 2022 (63 O.S. Supp.
19 2025, Section 4006), is amended to read as follows:

20 Section 4006. Service Oklahoma is hereby authorized and
21 directed to utilize its licensed operators appointed under the
22 Oklahoma Vehicle License and Registration Laws in the administration
23 of the Uniform Certificate of Title for Vessels Act and the Oklahoma
24 Vessel and Motor Registration Act.

1 SECTION 38. AMENDATORY 63 O.S. 2021, Section 4026, is
2 amended to read as follows:

3 Section 4026. At any time that a mortgagee repossesses a vessel
4 or motor on which the registration has become delinquent as of the
5 date of such repossession, the mortgagee shall not be required, as a
6 condition for registration of said vessel or motor to pay any of the
7 penalties which had accrued as of the date of such repossession
8 otherwise prescribed in the Uniform Certificate of Title for Vessels
9 Act and the Oklahoma Vessel and Motor Registration Act. Provided
10 that said penalties shall not be waived unless such vessel or motor
11 is registered by the mortgagee within five (5) days after it is
12 repossessed. Provided further, that if the mortgagor or spouse,
13 becomes the owner of the vessel or motor within ninety (90) days
14 from the date of repossession, the penalty shall reattach and be
15 paid when application is made for the new title.

16 SECTION 39. AMENDATORY 63 O.S. 2021, Section 4027, as
17 amended by Section 60, Chapter 171, O.S.L. 2025 (63 O.S. Supp. 2025,
18 Section 4027), is amended to read as follows:

19 Section 4027. All title and registration fees and penalties
20 levied by the terms and provisions of the Uniform Certificate of
21 Title for Vessels Act and the Oklahoma Vessel and Motor Registration
22 Act shall become and remain a first lien upon any vessel or motor on
23 which such fees, taxes and penalty are due and unpaid. The lien
24

1 shall be prior, superior and paramount to all other liens of
2 whatsoever kind or character.

3 After the thirtieth day after such title and registration fees
4 become delinquent, it shall be the duty of Service Oklahoma or the
5 Department of Public Safety, its designated officers or employees,
6 and of sheriffs and all other duly authorized peace officers of this
7 state, to seize and take into custody every vessel or motor required
8 to be titled and registered pursuant to the Uniform Certificate of
9 Title for Vessels Act and the Oklahoma Vessel and Motor Registration
10 Act but which is not so registered by the owner thereof, and such
11 vessel or motor shall not be released to the owner thereof until it
12 is duly registered and the fee due thereon paid in full, together
13 with any penalty provided by law, plus the cost of seizure,
14 including a reasonable cost of taking such vessel or motor into
15 custody and storing it. In the event the owner or possessor of any
16 such vessel or motor seized, as provided by law, shall fail to pay
17 the registration fee and penalty due thereon, together with such
18 costs of seizure and storage, the officer shall proceed to foreclose
19 the lien thereon by selling such vessel or motor following the
20 procedure for foreclosure of liens on personal property prescribed
21 in Section 91 of Title 42 of the Oklahoma Statutes.

22 The provisions of the Uniform Tax Procedure Code under Title 68
23 of the Oklahoma Statutes and the Oklahoma Vehicle License and
24 Registration Act, Section 1101 et seq. of Title 47 of the Oklahoma

1 Statutes, providing procedures and remedies with respect to all
2 state taxes shall also be available for the enforcement of the
3 provisions of the Uniform Certificate of Title for Vessels Act and
4 the Oklahoma Vessel and Motor Registration Act.

5 SECTION 40. AMENDATORY 63 O.S. 2021, Section 4028, as
6 amended by Section 61, Chapter 171, O.S.L. 2025 (63 O.S. Supp. 2025,
7 Section 4028), is amended to read as follows:

8 Section 4028. All titling and registration fees, taxes, and
9 penalties collected by Service Oklahoma pursuant to the provisions
10 of ~~Sections 4014 and~~ Section 58 of this act and Section 4021 of this
11 title shall be apportioned by Service Oklahoma as provided in
12 Section 1104 of Title 47 of the Oklahoma Statutes.

13 SECTION 41. AMENDATORY 63 O.S. 2021, Section 4029, as
14 amended by Section 218, Chapter 282, O.S.L. 2022 (63 O.S. Supp.
15 2025, Section 4029), is amended to read as follows:

16 Section 4029. A. If Service Oklahoma shall determine at any
17 time that an applicant for ~~a certificate of title of or~~ registration
18 for a vessel or motor is not entitled thereto, it may refuse to
19 ~~issue such certificate or to~~ register such vessel or motor. Service
20 Oklahoma may for a similar reason, after ten (10) calendar days'
21 notice and a hearing, revoke the ~~certificate of title and~~
22 registration already acquired. Said notice may be served in person
23 or by registered mail.

1 B. In addition, in every case where a vessel or motor has been
2 ~~titled or~~ registered upon an application containing any false
3 statement of a fact required in this section to be shown in an
4 application for the title or registration thereof, Service Oklahoma
5 shall give written notice of at least ten (10) calendar days to the
6 owner of the vessel or motor and shall require the owner to appear
7 before it for the purpose of showing cause why said ~~title or~~
8 registration should not be canceled. Unless satisfactory
9 explanation is given by the owner concerning such false statement,
10 Service Oklahoma shall cancel the ~~title or~~ registration. The owner
11 of the vessel or motor shall then be required to immediately ~~retitle~~
12 ~~or~~ reregister the vessel or motor and pay the required fees. The
13 owner shall not be entitled to refund or credit for the fees paid
14 for ~~titling and~~ registration of the vessel or motor made under the
15 application which contained any false statement of fact.

16 C. Service Oklahoma shall insert in said application forms
17 appropriate notice to the applicant that any false statement of a
18 fact required to be shown in such application for ~~title or~~
19 registration subjects the applicant to prosecution.

20 SECTION 42. AMENDATORY 63 O.S. 2021, Section 4030, as
21 amended by Section 219, Chapter 282, O.S.L. 2022 (63 O.S. Supp.
22 2025, Section 4030), is amended to read as follows:

23 Section 4030. A. 1. Service Oklahoma shall, and each
24 federally recognized Indian tribe of this state may, develop and

1 implement a permanent number system for vessels which is consistent
2 with United States Coast Guard statutes and regulations. The system
3 shall be effective upon the effective date of this act.

4 2. Except as otherwise provided by this section, every vessel
5 on the waters of this state shall display the permanent number
6 assigned to it by Service Oklahoma or by a federally recognized
7 Indian tribe of this state, which number shall not be obliterated,
8 erased, mutilated, removed or missing.

9 3. In order to ensure that:

10 a. a permanent number issued by a federally recognized
11 Indian tribe of this state conforms to federal
12 statutory and regulatory requirements of the United
13 States Coast Guard, and

14 b. the rights prescribed in paragraph 2 of this
15 subsection are extended to every federally recognized
16 Indian tribe of this state,

17 every vessel on the waters of this state assigned a permanent number
18 by a federally recognized Indian tribe of this state which issues
19 permanent numbers shall be recorded and maintained by Service
20 Oklahoma in the same manner as Service Oklahoma records and
21 maintains the permanent number of vessels on the waters of this
22 state which are assigned by Service Oklahoma.

1 B. The vessels authorized to display a number other than that
2 required by the provisions of the Uniform Certificate of Title for
3 Vessels Act and the Oklahoma Vessel and Motor Registration Act are:

4 1. A documented vessel, provided that such vessel is currently
5 registered, is displaying both current registration decals, and the
6 name, hailing port and official federal documentation number
7 assigned to it are displayed on the vessel according to federal law
8 or federal rules and regulations;

9 2. A vessel from a country other than the United States
10 temporarily using the waters of this state;

11 3. A vessel from another state owned by an out-of-state
12 resident using the waters of this state;

13 4. A vessel whose owner is the United States, a state or a
14 subdivision thereof; provided, however, if such vessel is used for
15 recreational or rental purposes on the public waters of this state,
16 that vessel shall display the permanent number assigned to it by
17 Service Oklahoma;

18 5. A vessel that is used exclusively and solely for racing
19 purposes;

20 6. A vessel that is used exclusively and solely as a lifeboat;
21 and

22 7. A commercial flotation device which is assigned a permit by
23 the Scenic Rivers Commission pursuant to the provisions of Sections
24 1461 et seq. of Title 82 of the Oklahoma Statutes.

1 C. Except as otherwise provided for in this section, every
2 vessel and every outboard motor on the waters of this state shall
3 display the current registration decals or decal assigned to it by
4 Service Oklahoma. The outboard motor registration decal shall be
5 affixed to the upper portion of the motor cowling in such a manner
6 that approximately one-half (1/2) of the decal is displayed on the
7 left side of the motor cowling extending toward the rear of the
8 motor cowling. Vessel registration decals shall be:

9 1. Affixed on each side of the forward half of the vessel; and

10 2. In line with and within six (6) inches aft of the permanent
11 number.

12 D. The owner of any vessel issued a permanent number pursuant
13 to the provisions of the Uniform Certificate of Title for Vessels
14 Act and the Oklahoma Vessel and Motor Registration Act, Section 4002
15 et seq. of this title, shall place on or attach to the vessel the
16 permanent number in such manner that it may be clearly visible. The
17 permanent number shall:

18 1. Be maintained in legible condition;

19 2. Be painted, applied as a decal, or otherwise affixed to each
20 side of the forward half of the vessel in contrasting color to the
21 background, as high above the waterline as is practical;

22 3. Read from left to right;

23
24

1 4. Be comprised of numbers and letters printed in block style
2 of at least three (3) inches in height and one-half (1/2) inch in
3 stroke width; and

4 5. Have spaces or hyphens that are equal to the width of a
5 letter other than "I" or a number other than "1" between the letter
6 and number groupings.

7 No other similar numbers shall be displayed on either side of the
8 forward half of the vessel.

9 E. The provisions of this section shall not apply to sailboards
10 or fishing tubes.

11 F. Service Oklahoma shall adopt rules for the placement of the
12 registration decal in an alternate location for antique boats. In
13 this subsection, "antique boat" means a boat that:

14 1. Is used primarily for recreational purposes; and

15 2. Was manufactured before 1968.

16 Such rules shall allow vessels registered as antique boats to
17 display the registration decal on the left portion of the
18 windshield. In the absence of a windshield, the rules shall allow
19 operators of antique boats to attach the registration decal to the
20 certificate of registration and make such decal and certificate
21 available for inspection when the boat is operated on public water.

22 SECTION 43. AMENDATORY 63 O.S. 2021, Section 4031, is
23 amended to read as follows:

24

1 Section 4031. A. The owner of a boat livery shall cause to be
2 kept a record of the name and address of the person or persons
3 hiring any vessel, the identification number of such vessel, the
4 number of occupants of said vessel, the departure date and time, and
5 the expected date and time of return. The record shall be preserved
6 for at least six (6) months.

7 B. Neither the owner of a boat livery nor his agent or employee
8 shall permit any vessel to be operated or to depart from his
9 premises unless it shall have been provided, either by owner or
10 renter, with the equipment required pursuant to the Oklahoma Boating
11 Safety Regulation Act and any rules promulgated thereto.

12 C. The owner of a boat livery shall be required to comply with
13 the Uniform Certificate of Title for Vessels Act and the Oklahoma
14 Vessel and Motor Registration Act, Section 4002 et seq. of this
15 title.

16 SECTION 44. AMENDATORY 63 O.S. 2021, Section 4032, as
17 amended by Section 220, Chapter 282, O.S.L. 2022 (63 O.S. Supp.
18 2025, Section 4032), is amended to read as follows:

19 Section 4032. A. It shall be unlawful for any person to:

20 1. Lend or to sell to, or knowingly permit the use of by one
21 not entitled thereto, any certificate of title or registration
22 issued to or in the custody of the person so lending or permitting
23 the use thereof;

1 2. Alter or in any manner change a certificate of title or
2 registration certificate issued under the laws of this or any other
3 state;

4 3. Procure from another state or country or display upon any
5 vessel owned by the person within this state, except as otherwise
6 provided by the Oklahoma Vessel and Motor Registration Act, Section
7 4002 et seq. of this title, any number issued by any state or
8 country other than this state, unless there shall be displayed upon
9 such vessel at all times the permanent number assigned to it by
10 Service Oklahoma;

11 4. Buy, sell or dispose of, or have in the person's possession
12 for sale, use or storage, any secondhand or used vessel or motor on
13 which the registration fee has not been paid, as required by law,
14 and on which vessel or motor said person neglects, fails or refuses
15 to display at all times the permanent number assigned to it;

16 5. Register a vessel or motor on an assigned certificate of
17 title. This particular paragraph shall be applicable to all persons
18 except bona fide dealers who are holders of current and valid
19 dealers' licenses;

20 6. Operate a vessel or motor upon the waters of this state
21 after the registration deadline for that vessel or motor without a
22 proper title and registration, as prescribed by the Oklahoma Vessel
23 and Motor Registration Act, for the current year;

1 7. Release a certificate of title or excise tax receipt to any
2 unauthorized person or source, including any dealer. Violation of
3 this paragraph shall constitute sufficient grounds for discharge of
4 a licensed operator by Service Oklahoma;

5 8. Alter or in any manner change a permanent number issued for
6 a vessel under the laws of this state or any other state; or

7 9. Offer for sale any used vessel, used motor, or any used
8 vessel or motor part if the vessel, motor, or part:

9 a. is not currently registered, if required,

10 b. has had the hull identification number or serial
11 number removed,

12 c. has a hull identification number or serial number
13 which does not match the number listed on the current
14 title or registration, or

15 d. appears, is suspected, or is known to be stolen.

16 Anyone violating the provisions of this subsection shall be
17 guilty of a misdemeanor and, upon conviction, shall be subject to a
18 fine not to exceed Fifty Dollars (\$50.00) for each such violation.

19 B. Any owner who knowingly makes or causes to be made any false
20 statement of a fact required in this section to be shown in an
21 application for the title or registration of one or more vessels or
22 motors shall be deemed guilty of a misdemeanor and, upon conviction
23 thereof, shall be fined not more than One Thousand Dollars
24

1 (\$1,000.00), or shall be imprisoned in the county jail for not more
2 than one (1) year, or both such fine and imprisonment.

3 C. A violation of this section ~~and~~, any of the provisions of
4 Sections 4002 through 4031 of this title, or the Uniform Certificate
5 of Title for Vessels Act where a specific penalty has not been
6 imposed shall constitute a misdemeanor and upon conviction thereof
7 the person having violated it shall be fined not less than Ten
8 Dollars (\$10.00) and not more than One Hundred Dollars (\$100.00).

9 D. In addition thereto, it is specifically provided that any
10 person stating or giving or causing to be stated or given any false
11 information as to the location of any vessel or motor shall be
12 deemed guilty of a misdemeanor, and, upon conviction, shall be
13 punished by a fine of not more than Five Hundred Dollars (\$500.00),
14 or by imprisonment in the county jail for a period not to exceed one
15 (1) year, or by both such fine and imprisonment.

16 SECTION 45. AMENDATORY 63 O.S. 2021, Section 4033, as
17 amended by Section 221, Chapter 282, O.S.L. 2022 (63 O.S. Supp.
18 2025, Section 4033), is amended to read as follows:

19 Section 4033. A. It shall be unlawful for any person to engage
20 in the business of selling, or to serve in the capacity of, or act
21 as a dealer of new or used vessels, or motors, or new and used
22 vessels, and motors or any combination thereof in this state without
23 first obtaining a license therefor as provided for by the Oklahoma
24 Vessel and Motor Registration Act and the Uniform Certificate of

1 Title for Vessels Act. Any person having more than one location
2 where such business is carried on or conducted shall be required to
3 obtain and hold a current license for each such location.

4 B. 1. Dealer licenses issued pursuant to this section shall be
5 issued only to persons that prove to the satisfaction of Service
6 Oklahoma that they are clearly recognizable as bona fide dealers.
7 Proof of bona fide dealer status shall include, but need not be
8 limited to, the following:

- 9 a. Maintenance of a display area capable of regularly
10 displaying at least three vessels or motors, or a
11 minimum of one thousand two hundred (1,200) square
12 feet, indoors or outdoors,
- 13 b. Annual sales of substantial numbers of new or used
14 vessels or motors. "Substantial sales" normally means
15 sale of five or more vessels or motors unless the
16 applicant can show unusual circumstances justifying
17 lesser sales,
- 18 c. Consistent identification of the business as a dealer
19 or mercantile establishment in advertising, signs,
20 telephone book listings, and the like. The dealership
21 must be clearly identifiable as such by any person who
22 visits or deals with it,
- 23 d. Location of dealership in areas where zoning permits
24 such sales and commercial operations,

1 e. Regular hours of operation from May 1 to September 1,
2 inclusive, at least five (5) days per week, and

3 f. a picture, upon application for a new license, of the
4 business location which includes the selling lot and
5 the office and business sign.

6 2. Service Oklahoma shall issue a license to sell new vessels
7 or motors only to those persons having a dealer agreement to sell
8 new vessels or new motors in this state.

9 C. 1. Applications for licenses required to be obtained
10 pursuant to the provisions of this section shall be verified by the
11 oath or affirmation of the applicant and shall be on forms
12 prescribed by Service Oklahoma and furnished to such applicants, and
13 shall contain such information as Service Oklahoma deems necessary
14 to enable it to fully determine the qualifications and eligibility
15 of the applicant to receive the license requested. Service Oklahoma
16 shall require in such application, or otherwise, information
17 relating to:

- 18 a. the applicant's financial standing,
19 b. the applicant's business integrity,
20 c. whether the applicant has an established place of
21 business and is primarily engaged in the pursuit,
22 avocation or business for which a license or licenses
23 have been requested,
24

1 d. whether the applicant is able to properly conduct the
2 business for which a license or licenses have been
3 requested, and

4 e. such other pertinent information consistent with the
5 safeguarding of the public interest and the public
6 welfare.

7 All such applications for license or licenses shall be
8 accompanied by the appropriate fee or fees therefor in accordance
9 with the schedule set out in Section 4034 of this title.

10 2. In the event any such application is denied and the license
11 for which requested is not issued, the entire license fee shall be
12 returned to the applicant.

13 3. All licenses issued under the provisions of the Oklahoma
14 Vessel and Motor Registration Act and the Uniform Certificate of
15 Title for Vessels Act shall expire on December 31 following the date
16 of issue and shall be nontransferable. All applications for renewal
17 of a license issued pursuant to the provisions of this section shall
18 be submitted by December 1 of each year, and such license will be
19 issued by January 1. If applications have not been made for renewal
20 of licenses by December 31 of each year it shall be illegal for any
21 person to sell or to serve in the capacity or act as a dealer. If
22 after January 31 of each year the license has not been renewed or
23 the renewal paid, then such licensee shall be required to apply for
24 a license as a new applicant. Licensed operators will be notified

1 not to accept such dealers' titles until such time as licenses have
2 been issued by Service Oklahoma. Provided, however, such dealers
3 may transfer titles to vessels or motors purchased for resale prior
4 to the expiration of their license. Such dealer shall provide the
5 purchaser with a copy of the invoice showing purchase of the vessel
6 or motor prior to the expiration of the dealer's license. Such
7 transfers shall only be allowed within two (2) years of the license
8 expiration.

9 D. Application for a dealer's license must show that such
10 dealer has not violated any of the provisions of this section.

11 E. Service Oklahoma may require every person licensed as a
12 dealer, pursuant to the provisions of this subsection, to make a
13 report to Service Oklahoma within a period of seven (7) days after
14 the transfer by such person of the legal ownership of every vessel
15 or motor upon a form prescribed and furnished by Service Oklahoma,
16 showing the name and address of the purchaser, a description of the
17 vessel or motor, including but not limited to the make, model, year
18 made, permanent vessel number or motor number, as the case might be,
19 the date of the transfer and such other information as the
20 Commission may require, and containing a certificate signed by the
21 seller that the purchaser was given notice at the time of the sale
22 or transfer that the purchaser is required by law to obtain a
23 certificate of title for such vessel or motor from Service Oklahoma
24 within thirty (30) calendar days after such sale or transfer.

1 Service Oklahoma may cancel or suspend, in the manner provided by
2 law, the license of any person licensed as a dealer pursuant to the
3 provisions of this section who fails or refuses to comply with the
4 provisions of this section. Dealers failing to comply with
5 provisions of this section shall be responsible for all taxes due on
6 such sales or on such vessels or motors.

7 F. The license of each dealer shall be posted in a conspicuous
8 place in the dealer's place or places of business.

9 G. 1. A new dealer's license authorizes a dealer to transfer,
10 purchase and sell new and used vessels and motors.

11 2. A used dealer's license authorizes a dealer to transfer,
12 purchase and sell used vessels and motors.

13 3. A new dealer's license or a used dealer's license authorizes
14 a dealer to transfer and assign titles and purchase new and used
15 vessels and motors without paying excise tax.

16 H. Any dealer agreement executed or renewed on and after the
17 effective date of this act shall comply with the provisions of the
18 Oklahoma Vessel and Motor Registration Act and the Uniform
19 Certificate of Title for Vessels Act.

20 SECTION 46. AMENDATORY 63 O.S. 2021, Section 4036, is
21 amended to read as follows:

22 Section 4036. A. When a registration expires on a used vessel
23 or motor while in the possession of a dealer, the dealer shall affix
24

1 a dealer's demonstration permit to such vessel or motor whenever the
2 vessel or motor is used for demonstration.

3 B. Upon the purchase or transfer of ownership of an out-of-
4 state used vessel or motor by a dealer, or the purchase or transfer
5 of ownership of a vessel or motor which does not have a certificate
6 of title or a certificate of registration the dealer shall make
7 application for an Oklahoma certificate of title pursuant to the
8 Uniform Certificate of Title for Vessels Act and the Oklahoma Vessel
9 and Motor Registration Act, Section 4002 et seq. of this title.
10 Upon receipt of the Oklahoma certificate of title, the dealer shall
11 follow the procedure as set forth in subsection A of this section.
12 Provided, nothing in this title shall be construed as requiring a
13 dealer to register a vessel or motor purchased in another state
14 which will not be operated or sold in this state.

15 C. Upon sale or transfer of ownership of the used vessel or
16 motor, the dealer shall place upon the reassignment portion of the
17 certificate of title a tax stamp issued by the county treasurer of
18 the county in which the dealer has his primary place of business.
19 The tax stamp shall be issued upon payment of a fee of Three Dollars
20 and fifty cents (\$3.50) and shall be in lieu of the dealer's ad
21 valorem tax on the inventories of used vessels or motors but shall
22 not relieve any other property of the dealer from ad valorem
23 taxation.

1 D. Upon sale of a used vessel or motor to another licensed
2 dealer, the selling dealer shall place the tax stamp required in
3 subsection C of this section upon the certificate of title.

4 E. The purchaser of every used vessel or motor except as
5 otherwise provided by law, shall obtain registration and title for
6 the vessel or motor within thirty (30) calendar days from the date
7 of purchase of same.

8 SECTION 47. AMENDATORY 63 O.S. 2021, Section 4041, as
9 amended by Section 226, Chapter 282, O.S.L. 2022 (63 O.S. Supp.
10 2025, Section 4041), is amended to read as follows:

11 Section 4041. Service Oklahoma may deny an application for a
12 license, or revoke or suspend a license or impose a fine not to
13 exceed Five Hundred Dollars (\$500.00) against a dealer for each day
14 that any provision of this section or Sections 4033 through 4040 of
15 this title is violated or for any of the following reasons:

16 1. On satisfactory proof of unfitness of the applicant in any
17 application for any license pursuant to the provisions of the
18 Oklahoma Vessel and Motor Registration Act or the Uniform
19 Certificate of Title for Vessels Act;

20 2. For any material misstatement made by an applicant in any
21 application for any license pursuant to the provisions of the
22 Oklahoma Vessel and Motor Registration Act;

23 3. For any failure to comply with any provision of the Oklahoma
24 Vessel and Motor Registration Act or the Uniform Certificate of

1 Title for Vessels Act or any rule promulgated by Service Oklahoma
2 under authority vested in it by the Uniform Certificate of Title for
3 Vessels Act or the Oklahoma Vessel and Motor Registration Act ,
4 Section 4002 et seq. of this title;

5 4. A change of condition after license is granted resulting in
6 failure to maintain the qualifications for license;

7 5. Being a dealer who:

- 8 a. has required a purchaser of a new vessel or motor, as
9 a condition of sale and delivery thereof, to also
10 purchase special features, appliances, accessories or
11 equipment not desired or requested by the purchaser
12 and installed by the dealer,
- 13 b. uses any false or misleading advertising in connection
14 with his business as such a dealer,
- 15 c. has committed any unlawful act which resulted in the
16 revocation of any similar license in another state,
- 17 d. has failed or refused to perform any written agreement
18 with any retail buyer involving the sale of a vessel
19 or motor,
- 20 e. has been convicted of a crime involving moral
21 turpitude,
- 22 f. has committed a fraudulent act in selling, purchasing,
23 or otherwise dealing in vessels or motors or has
24 misrepresented the terms and conditions of a sale,

1 purchase, or contract for sale or purchase of a vessel
2 or motor or any interest therein including an option
3 to purchase such vessel or motor, or

4 g. has failed to meet or maintain the conditions and
5 requirements necessary to qualify for the issuance of
6 a license;

7 6. Being a dealer who does not have an established place of
8 business;

9 7. Being a new vessel or new motor dealer who:

10 a. does not provide for a suitable repair shop separate
11 from the display room with ample space to repair or
12 recondition one or more vessels or motors at the same
13 time, and which is equipped with such parts, tools and
14 equipment as may be requisite for the servicing of
15 vessels or motors in such a manner as to make them
16 comply with the safety laws of this state and to
17 properly fulfill the dealer's or manufacturer's
18 warranty obligation. Provided that the provisions of
19 this subparagraph shall not apply to:

20 (1) mercantile establishments engaged in the selling
21 of vessels and motors if:

22 (a) such vessel and motor business does not
23 constitute more than ten percent (10%) of
24 the business of such establishment,

(b) the vessels sold at such establishment are under fourteen (14) feet in length, and

(c) the outboard motors sold at such establishment are under ten (10) horsepower, or

(2) dealers which are engaged solely in the business of selling canoes. For the purposes of this subsection, "canoe" shall mean a vessel that is long relative to its width, that has curved sides and is tapered to two (2) pointed ends, or is tapered to one (1) pointed end and blunt on the other end, and is generally of traditional shape,

b. does not hold a dealer agreement in effect with a manufacturer or distributor of new vessels or motors for the sale of the same and is not authorized by the manufacturer or distributor to render predelivery preparation of such vessels or motors sold to purchasers and to perform any authorized post-sale work pursuant to the manufacturer's or distributor's warranty, or

c. does not properly service a new vessel or motor before delivery of same to the original purchaser thereof.

SECTION 48. AMENDATORY 63 O.S. 2021, Section 4106, is

amended to read as follows:

1 Section 4106. An original or a transfer certificate of title
2 shall be issued without the payment of the excise tax levied by this
3 act for:

4 1. Any vessel or motor owned by a nonresident which is already
5 registered in another state and has been in Oklahoma for a period in
6 excess of sixty (60) calendar days in any single registration year.

7 2. Any vessel or motor brought into this state by a person
8 formerly living in another state, who has owned and registered said
9 vessel or motor in such other state of his residence at least sixty
10 (60) calendar days prior to the time it is required to be registered
11 in this state;

12 3. Any vessel or motor registered by the United States, State
13 of Oklahoma or by any of the political subdivisions thereof;

14 4. Any vessel or motor the legal ownership of which is obtained
15 by the applicant for a certificate of title by inheritance;

16 5. Any vessel or motor which is owned and being offered for
17 sale by a person licensed as a dealer under the provisions of the
18 Uniform Certificate of Title for Vessels Act and the Oklahoma Vessel
19 and Motor Registration Act, registered in Oklahoma and the excise
20 tax paid thereon;

21 6. Any vessel or motor, the ownership of which was obtained by
22 the lienholder or mortgagee under or by foreclosure of a lien or
23 mortgage in the manner provided by law or to the insurer under
24

1 subrogated rights arising by reason of loss under an insurance
2 contract;

3 7. Any vessel or motor, the legal ownership of which is
4 obtained by transfers:

5 a. from one corporation to another corporation pursuant
6 to a reorganization. As used in this section, the
7 term "reorganization" means:

8 (1) a statutory merger or consolidation, or

9 (2) the acquisition by a corporation of substantially
10 all of the properties of another corporation when
11 the sole consideration is all or a part of the
12 voting stock of the acquiring corporation, or of
13 its parent or subsidiary corporation;

14 b. in connection with the winding up, dissolution or
15 liquidation of a corporation only when there is a
16 distribution in kind to the shareholders of the
17 property of such corporation;

18 c. to a corporation for the purpose of organization of
19 such corporation when the former owners of the vessel
20 or motor transferred are immediately after the
21 transfer in control of the corporation, and the stock
22 or securities received by each is substantially in
23 proportion to his interest in the vessel or motor
24 prior to the transfer;

1 d. to a partnership in the organization of such
2 partnership if the former owners of the vessel or
3 motor transferred are, immediately after the transfer,
4 members of such partnership and the interest in the
5 partnership received by each is substantially in
6 proportion to his interest in the vessel or motor
7 prior to the transfer;

8 e. from a partnership to the members thereof when made in
9 the dissolution of such partnership;

10 8. All vessels or motors owned by the council organizations or
11 similar state supervisory organizations of the Boy Scouts of
12 America, Girl Scouts of U.S.A. and the Campfire Girls; and

13 9. All vessels or motors owned by organizations which are
14 exempt from taxation pursuant to the provisions of Section 501(c)(3)
15 of the Internal Revenue Code, 26 U.S.C., Section 501(c)(3), and
16 which are primarily devoted to the establishment, development,
17 operation, promotion, and participation in, alone or in conjunction
18 with others, educational and training programs and competitive
19 events to provide knowledge, information, or comprehensive skills
20 related to the sports of sailing, fishing, boating, and other
21 aquatic related activities.

22 SECTION 49. AMENDATORY 63 O.S. 2021, Section 4107, is
23 amended to read as follows:

1 Section 4107. A. The excise tax levied by the Oklahoma Vessel
2 and Motor Excise Tax Act is in lieu of all other taxes on the
3 transfer or the first registration in this state of vessels and
4 motors, including the optional equipment and accessories attached
5 thereto at the time of the sale and sold as a part thereof, except:

6 1. Vessel and motor registration fees levied pursuant to the
7 provisions of the Uniform Certificate of Title for Vessels Act and
8 the Oklahoma Vessel and Motor Registration Act; and

9 2. Any fees for the issuance of either an original, renewal,
10 transfer or duplicate certificate of title.

11 B. This section shall not relieve any vessel or motor dealer
12 from liability for the sales tax on all sales of accessories or
13 optional equipment, or parts, which are not attached to and sold as
14 a part thereof and included in the sale of such vessels or motors.

15 SECTION 50. AMENDATORY 63 O.S. 2021, Section 4204, as
16 amended by Section 233, Chapter 282, O.S.L. 2022 (63 O.S. Supp.
17 2025, Section 4204), is amended to read as follows:

18 Section 4204. A. The provisions of the Oklahoma Boating Safety
19 Regulation Act shall apply to the waters of this state under the
20 jurisdiction of the Grand River Dam Authority, provided, the
21 Department of Public Safety may have jurisdiction to administer and
22 enforce the provisions of the Oklahoma Boating Safety Regulation Act
23 upon waters of this state under the jurisdiction of the Grand River
24 Dam Authority. The administration and enforcement of the Oklahoma

1 Boating Safety Regulation Act upon the waters under the jurisdiction
2 of the Grand River Dam Authority are vested in the Grand River Dam
3 Authority. Said Authority, and its employees, shall, except as
4 otherwise provided in this section, have the same authority with
5 respect to the enforcement and administration of the Oklahoma
6 Boating Safety Regulation Act upon such waters as are vested by the
7 Oklahoma Boating Safety Regulation Act in Service Oklahoma with
8 respect to the other waters of this state.

9 B. The Authority may be designated by Service Oklahoma as a
10 licensed operator to award numbers and issue certificates of title
11 and registration for vessels and motors in accordance with the
12 provisions of the Uniform Certificate of Title for Vessels Act and
13 the Oklahoma Vessel and Motor Registration Act and with any rules
14 and regulations of Service Oklahoma either from blocks of numbers
15 and certificates assigned to said Authority by Service Oklahoma or
16 such other method as shall be prescribed by Service Oklahoma. The
17 Authority shall remit all fees collected by it pursuant to this
18 section to Service Oklahoma to be apportioned and deposited in
19 accordance with the provisions of the Oklahoma Vessel and Motor
20 Registration Act.

21 SECTION 51. AMENDATORY 68 O.S. 2021, Section 2805, is
22 amended to read as follows:

23 Section 2805. The following fees or taxes levied by the
24 provisions of the Oklahoma Statutes shall be in lieu of ad valorem

1 tax, whether in lieu of real property tax, personal property tax, or
2 both as provided by law:

3 1. The registration fees and taxes imposed upon aircraft by
4 Section 251 et seq. of Title 3 of the Oklahoma Statutes;

5 2. Registration fees for motor vehicles as provided in Section
6 1103 of Title 47 of the Oklahoma Statutes, except as otherwise
7 specifically provided;

8 3. The fee imposed upon transfers of used vehicles in lieu of
9 the ad valorem tax upon inventories of used motor vehicles by
10 Section 1137.1 of Title 47 of the Oklahoma Statutes;

11 4. The registration and license fees imposed upon vessels and
12 motors pursuant to the Uniform Certificate of Title for Vessels Act
13 and the Oklahoma Vessel and Motor Registration Act, Section 4001 et
14 seq. of Title 63 of the Oklahoma Statutes;

15 5. The taxes levied upon the gross production of substances
16 pursuant to Section 1001 of this title;

17 6. The taxes levied upon the gross production of substances
18 pursuant to Section 1020 of this title;

19 7. The tax imposed upon gross receipts pursuant to Section 1803
20 of this title;

21 8. The tax imposed upon certain textile products pursuant to
22 Section 2001 of this title;

23 9. The tax imposed upon certain freight cars pursuant to
24 Section 2202 of this title;

1 10. The tax imposed on certain parts of the inventories, both
2 new and used items, owned and/or possessed for sale by retailers of
3 farm tractors and other equipment pursuant to Sections 1 through 4
4 of this act;

5 11. The tax imposed upon inventories of new vehicles and
6 certain vessels pursuant to Section 5301 of this title; and

7 12. Such other fees or taxes as may be expressly provided by
8 law to be in lieu of ad valorem taxation.

9 SECTION 52. AMENDATORY 68 O.S. 2021, Section 5301, is
10 amended to read as follows:

11 Section 5301. A. A tax is hereby imposed in lieu of the ad
12 valorem tax on the inventories of new automobiles, new trucks, new
13 travel trailers, new manufactured homes, new recreational vehicles
14 and new motorcycles owned and/or possessed for sale by Oklahoma
15 licensed dealers, licensed under the Oklahoma Vehicle License and
16 Registration Act, and on the inventories of new vessels and new
17 motors owned and/or possessed for sale by Oklahoma licensed dealers
18 licensed pursuant to the Uniform Certificate of Title for Vessels
19 Act and the Oklahoma Vessel and Motor Registration Act. Said tax
20 shall be paid by the dealer on such new vehicles in lieu of the
21 annual ad valorem tax assessment of his average inventory of new
22 vehicles, new manufactured homes, new recreational vehicles, new
23 vessels and new motors, but shall not relieve any other property of
24 the dealer from ad valorem taxation.

1 B. Used motor vehicle dealers shall pay a tax in lieu of the ad
2 valorem tax on inventories of used motor vehicles as provided for in
3 Section 1137.1 of Title 47 of the Oklahoma Statutes.

4 SECTION 53. AMENDATORY 68 O.S. 2021, Section 5306, is
5 amended to read as follows:

6 Section 5306. When used in this act, the terms "automobile",
7 "truck", "manufactured home", "travel trailer" and "motorcycle"
8 shall have the meanings as same are respectively defined in the
9 Oklahoma Vehicle License and Registration Act, and the terms "new
10 automobile", "new truck", "new motorcycle", "new manufactured home"
11 and "new recreational vehicle" shall be given the same meaning as
12 the term "new vehicle" is defined in the Oklahoma Vehicle License
13 and Registration Act. Vessel and motors shall have the same
14 meanings as in the Uniform Certificate of Title for Vessels Act and
15 the Oklahoma Vessel and Motor Registration Act. The term "truck"
16 shall also include truck-tractors and farm trucks, but this act
17 shall not be construed as relieving or exempting from ad valorem
18 taxation the inventory of dealers in special mobilized machinery,
19 motor homes or any other similar self-propelled vehicles.

20 SECTION 54. RECODIFICATION 63 O.S. 2021, Section 4014,
21 as amended by Section 209, Chapter 282, O.S.L. 2022 (63 O.S. Supp.
22 2025, Section 4014), shall be recodified as Section 4078 of Title 63
23 of the Oklahoma Statutes, unless there is created a duplication in
24 numbering.

1 SECTION 55. RECODIFICATION Section 2, Chapter 71, O.S.L.
2 2023 (63 O.S. Supp. 2025, Section 4012.1), shall be recodified as
3 Section 4079 of Title 63 of the Oklahoma Statutes, unless there is
4 created a duplication in numbering.

5 SECTION 56. REPEALER 63 O.S. 2021, Sections 4008, as
6 amended by Section 204, Chapter 282, O.S.L. 2022, 4009, as amended
7 by Section 205, Chapter 282, O.S.L. 2022, 4012, as amended by
8 Section 207, Chapter 282, O.S.L. 2022, and 4013 as amended by
9 Section 208, Chapter 282, O.S.L. 2022 (63 O.S. Supp. 2025, Sections
10 4008, 4009, 4012, and 4013), are hereby repealed.

11 SECTION 57. This act shall become effective November 1, 2028.

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